

Bihar Land Reforms Rules, 1951

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[Bihar Land Reforms Rules, 1951](#)

[Published vide Notification No. 4266, L.R. dated the 16th October 1951, published in the Bihar Gazette, Extraordinary, of the 22nd October, 1951](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These Rules may be called the Bihar Land Reforms Rules, 1951.](#)

[\(2\)](#)

[They shall come into force at once.](#)

[2.](#)

[Definitions.](#)

- In these Rules, unless there is anything repugnant in the subject or context. -

(a)

"The Act" means the Bihar Land Reforms Act, 1950;

(b)

"Form" means a form set out in the Schedule;

(c)

"Section" means a Section of the Act;

(d)

"Schedule" means a schedule appended to these Rules;

(c)

All words and expressions used in these Rules and not defined in these Rules but defined in the Act shall respectively have the same meanings as assigned to them in the Act.

3.

Mode of service of notice or Order.

(1)

Unless otherwise provided in the Act, any notice or order required to be served under the provisions of the Act shall be served by delivering or tendering a copy thereof duly signed and sealed, to the person on whom it is to be served or to his duly authorised agent or to his agent in charge of the estate or tenure or part thereof to which the notice or order relates. A copy of every such notice or order shall be affixed to the notice boards of the offices of, the Collector of the district from which the notice is to be issued and of, the Collector of the district in which the notice is to be served.

(2)

Where the person on whom the notice or order is to be served and his agent in charge of the estate or tenure to which the notice or order relates cannot be found and where such person has no agent empowered to accept service of notice or order on his behalf, service may be made on any adult member of the family of such person residing with him.

(3)

Where the serving officer delivers or tenders a copy of the notice or order to the person to be served with such notice or order personally or to an agent or other person on his behalf, he shall require the signature of the person to whom the copy is so delivered or tendered to an acknowledgement of service to be endorsed on the original notice or order.

(4)

Where the person to be served with notice or order or his agent or such other person as aforesaid refuses to sign the acknowledgement, or where the serving officer after using all due and reasonable diligence cannot find the person to be served with the notice or order and there is no agent empowered to accept service of notice or order on his behalf, or any other person on whom service can be made, service may be made by affixing a copy of the notice or order on the outer door or some other conspicuous part of the house in which the person to be served with the notice or orders ordinarily resides or carries on business or personally works for gain or on the outer door of the office or cutchery of the estate or tenure to which the notice or order relates.

The serving officer shall, in all cases in which the notice or order has been served under this sub-rule endorse or annex, or cause to be endorsed or annexed, on or to the original notice or order a return stating the date on which and the manner in which the notice or order was served and the names and addresses of two persons witnessing the service.

(5)

Notwithstanding anything contained in the foregoing sub-rules the Collector may, if he thinks fit, order that the notice or order shall be served -

(i)

by sending a copy thereof, duly signed and sealed by registered post with acknowledgement due to the person on whom such notice or order is to be served; or

(ii)

if the notice or order relates to any estate or tenure, by affixing such notice or order to a conspicuous place in the estate or tenure to which the notice or order relates.

In the case referred to in clause (i) of sub-rule (5), the posting of the notice or order shall be sufficient proof of the service of such notice or order on the person concerned.

In the case referred to in clause (ii) of sub-rule (5), a return by the serving officer stating the date of such service

attested by two persons shall be sufficient proof of the service of notice or order on the person concerned.

(6)

Where the person to be served with a notice or order under the Act is a minor or a person of unsound mind, the service shall be made in the aforesaid manner on the guardian of such minor or person of unsound mind, as the case may be.

3A.

[Mode of service of a general or public notice or order.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- Unless otherwise provided in the Act or the Rules, any general or public notice or order required to be served under the provisions of the Act or the Rules shall be served by affixing a copy of it in the presence of not less than two persons at some conspicuous public place where the property concerned is situated. The publication of the notice shall also be announced by the beat of drum in the place where it is published.

The serving officer shall in such case endorse or annex, or cause to be endorsed or annexed on or to the original notice a return stating the date on which, and the manner in which the notice was published and the names and addresses of the two persons witnessing or attesting the publication].

4.

[Form of notice under clauses (g), (h), (hh), and (i) of Section 4.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- A notice under clause (g) of Section 4 shall be in Form A, the notices under clause (h) of Section 4 shall be in Forms B, B(1) and B(2), notices under clause (hh) of Section 4 shall be in Forms B(3) and B(4) and the notice under clause (i) of Section 4 shall be in Form C.

The notices in Forms A, B (1) B(2), B(4) and C shall be served in the manner provided in Rule 3, and the general notice in Forms B and B(3) shall be served in the manner provided in Rule 3-A.]

4A.

[Procedure of disposal of appeals under the proviso to return 4(cc), proviso to Section 4(g), first proviso to Section 4(h), the proviso to Section 4(hh) and Section 8.

[Substituted by Notification No. G.S.R. 73, dated 30.5.1973.]

- The procedure to be followed by the appellate authority in disposing of appeal under the proviso to clause (cc) of Section 4, proviso to clause (g) of Section 4, first proviso to clause (h) of Section 4, the proviso to clause (hh) of Section 4 and Section 8 shall, so far as may be, be the same as is provided for civil appeals in the Rules under Order XLI of the Code of Civil Procedure 1908.]

4B.

[Appellate Authority under the proviso to Section 4(cc), the first proviso to Section 4(h) and the proviso to Section 4(hh).

[Substituted by Notification No. G.S.R. 73, dated 30.5.1973.]

- An appeal against an order of the Collector under the proviso to clause (cc) of Section 4, the first proviso to clause (h) of Section 4 and under the proviso to clause (hh) of Section 4 shall lie, -

(i)

if such order is passed by any officer below the rank of the Collector of a district, to the Collector of district; and

(ii)

if such order is passed by the Collector of the district, to the Commissioner of the Division.]

5.

Determination of fair and equitable rent under Section 5.

- In determining the ground rent payable by a proprietor or tenure-holder under the proviso to sub-section (i) of Section 5 for homesteads which are used by such proprietor or tenure holder for the purpose of letting out on rent, the Collector shall have regard to the average rent payable by occupancy raiyats as rent in respect of homesteads of a similar description and with similar advantages in the vicinity or, where no such homestead exists, to the average rent payable by occupancy raiyats in respect of the land of similar description and with similar advantages in the vicinity.

[Explanation. - The expression 'average rent' shall mean the average of ground-rents which were paid during the previous agricultural year for homestead lands of a similar description and with similar advantages in the vicinity or, where no such homestead lands exist, the average of money-rent which were paid by occupancy raiyats during the previous agricultural year for lands of a similar description and with similar advantages in the vicinity.]

[Added by Notification No. 3565 L.R. dated the 24th August 1953, published in Bihar Gazette, Extraordinary, of the 10th

September, 1953.]

6.

Determination of fair and equitable rent under Section 6.

- In determining the rent payable by a proprietor or tenure-holder in respect of lands left in his possession under Section 6, the Collector shall have regard to the average rate of rent payable by occupancy raiyats for lands of a similar description and with similar advantages in the vicinity.

[Explanation. - The expression 'average rate of rent' shall mean the average of money-rents which were paid during the previous agricultural year by occupancy raiyats for lands of a similar description and with similar advantages in the vicinity.]

[Substituted by Notification No. G.S.R. 119 dated 15.11.1972.]

7.

[Determination of fair and equitable rent under Sections 7, 7-D and 7-F.

[Substituted by Notification No. G.S.R. 119 dated 15.11.1972.]

- In determining fair and equitable ground rent. -

(i)

payable by a proprietor or tenure-holder under Section 7 in respect of lands on which buildings or structures other than buildings used primarily as office or Kutcheries and, or

(ii)

payable by the owner of an industrial undertaking who is a settlee as mentioned in Section 7-D or Section 7-F in respect of lands and buildings or structures therein, which are the subject-matter of such settlement, the Collector shall have regard to the average rate of rent payable by tenants for lands, buildings or structures of a similar description and with similar advantages in the vicinity:

Provided that if no lands, buildings or structures of similar description and with similar advantages be available in the vicinity of the lands, buildings or structures of the class mentioned in clause (ii), the Collector shall determine fair and equitable ground rent on the basis of the average rate of rent prevailing in other parts of the town or village in which the concerned land belonging to the industrial undertaking is situate.

Explanation. - The expression 'average rate of rent' shall mean the average of money rents which were paid for lands of a similar description and with similar advantage in the vicinity.]

7A.

[Procedure of determining fair and equitable rent and ground rent under Rules 5, 6, 7, 7-D and 7-F.

[Substituted by Notification No. G.S.R. 119 dated 15.11.1972.]

- For the purpose of determining fair and equitable rent and ground rent in respect of certain lands or buildings deemed to be settled with a proprietor or tenure-holder under Sections 5, 6, 7, 7-D and 7-F, the Collector shall observe the procedure laid down in Rules 7-B to 7(I).]

7B.

[Form and manner of application - Form K.

[Substituted by Notification No. G.S.R. 119 dated 15.11.1972.]

- (i) The Collector may, on receipt of a report, or of his own motion, by a written order served in the manner provided in Rule 3, require each outgoing proprietor or tenure holder of an estate or an industrial undertaking of an estate or tenure vested in the State to file an application before him in Form K furnishing therein a complete and accurate statement and description of all such lands lying with his jurisdiction, as may be deemed to have been settled by the State with such proprietor or tenure-holder or the industrial undertaking under Sections 5, 6, 7, 7-D and 7-F, determination of fair and equitable rent or ground rent thereof.

(ii)

An outgoing proprietor or tenure-holder of an estate or tenure vested in the State may, of his own motion, and without being so required by the Collector by an order referred to in sub-rule (i) above, file such application before the Collector furnishing the particulars prescribed in Form K.

(iii)

An application under sub-rule (i) or (ii) above shall for the purposes of fees payable under the Court-fees Act, 1870 be deemed to be an application referred to in the second paragraph of clause (b) of Article 1 of Schedule II to the said Act and shall also be verified in the manner prescribed for verification of a plaint under the Code of Civil Procedure, 1908 by

the applicant or his agent duly authorised in this behalf.

(iv)

If an outgoing proprietor or tenure-holder or industrial undertaking of an estate or tenure vested in the State fails to file an application in Form K under sub-rule (i) or (ii), Collector may, of his own motion, take such action as may be deemed necessary for obtaining complete and accurate information for the purpose of determining fair and equitable rent and ground-rent, under Sections 5, 6, 7, 7-D and 7-F.]

7C.

Settlement proceeding to be started in each case - Register 8 (Miscellaneous cases).

- A separate proceeding will be started in respect of each case in which the Collector takes action under sub-rule (i) or for each application filed under sub-rule (ii) [or in such case in which the Collector takes suo motu action under sub-rule (iv) of Rule 7-B]

[Inserted by Notification No. 1644, L.R. dated 24.2.1960.]

. Each proceeding will form a separate miscellaneous revenue record to which an order-sheet prescribed in Rule 129 of the Bihar Record Manual, 1941 (Schedule XIV - Form No. 562) will be attached, such case record will bear a serial number, and will be entered in 'Register 8 - Miscellaneous Cases prescribed at page 17 of the Bihar and Orissa Register and Return Manual, 1932.

7D.

General notice - Mode of service - Form L.

- (i) The Collector shall on receipt of an application under sub-rule (i) or [(ii) or after taking suo motu action under sub-rule (iv) of Rule 7-B]

[Inserted by Notification No. 1644, L.R. dated 24.2.1960.]

, issue a general notice in Form L fixing a date, time and place for enquiry with calling upon all persons interested or concerned, to attend such enquiry with such evidence as they may like to produce in support of their claims or objections, if any.

(ii)

A general notice prescribed in sub-rule (i) shall be served by posting a copy of it in the presence of not less than two persons at some conspicuous place in each village comprising the lands under settlement as well as by beat of drum. Such notice shall be served at least fifteen days previous to the date fixed for enquiry.

(iii)

The serving officer shall, in such a case, endorse or annex or cause to be endorsed or annexed, on or to the original notice a return stating the date on which, and the manner in which, the notice was served and the names and addresses of two persons witnessing or attesting the service.

7E.

Holding of enquiry, irrespective of any claim or objection - Preparation of a report.

- Particulars to be included in the report - On the date or dates fixed for enquiry, the Collector shall, personally or through [a Kanungo or a Circle Inspector]

[Substituted by Notification No. 1644, L.R. dated 24.2.1960.]

, hold an enquiry irrespective of any claim or objection having been received or not, and prepare a report including, amongst others, the following particulars:

(i)

Description and extent of the homesteads, referred to in the proviso to sub-section (1) of Section 5, which are found on enquiry to have been used by the outgoing proprietor or tenure-holder for the purpose of letting out on rent, together with the average rate of ground rent which the Enquiry Officer considers to be fair and equitable.

(ii)

Description and extent of lands used for agricultural or horticultural purposes, referred to in sub-section (1) of Section 6, which are found on enquiry to have been in Khas possession of the outgoing proprietor or tenure-holder on the date of vesting together with the average rate of rent which the Enquiry officer considers to be fair and equitable.

(iii)

Description and extent of the proprietor's private land under a temporary lease in conformity with the provisions of Section 116 of the Bihar Tenancy Act, 1885, referred to in clause (a) (i) of subsection (1) of Section 6, together with the average rate of rent which the Enquiry Officer considers to be fair and equitable;

(iv)

Description and extent of the landlord's privileged lands under a temporary lease in conformity with the provisions of Section 43 of the Chhota Nagpur Tenancy Act, 1908 together with the average rate of rent which the Enquiry Officer considers to be fair and equitable;

(v)

Description and extent of lands used for agricultural or horticultural purposes, referred to in clause (b) of sub-section (1) of Section 6, which are found on enquiry to have been held under the direct possession of a temporary lessee of the estate or tenure, together with the average rate of rent which the Enquiry Officer considers to be fair and equitable;

(vi)

Description and extent of lands used for agricultural or horticultural purposes and in the possession of a mortgagee, referred to in clause (c) of sub-section (1) of Section 6, which are found on enquiry to have been in Khas Possession of the outgoing proprietor or tenure holder immediately before the execution of the mortgage bond, together with the average rate of rent which the Enquiry Officer considers to be fair and equitable;

(vii)

[Description and extent of buildings or structure together with the lands on which they stand, other than any buildings used primarily as office or Cutchery, referred to in sub-section (1) of Section 7 or Section 7-D or Section 7-F, which are found on enquiry to have been in possession of the outgoing proprietor or tenure-holder or as the case may be of the industrial undertaking or other industrial unit of the vested estate, at the commencement of the Act and sub-section (1) of Section 7-D or Section 7-F before the 1st day of January, 1946, together with the average rate of ground-rent which the Enquiry Officer considers to be fair and equitable.]

[Substituted by Notification No. G.S.R. 119, dated 15.11.1972.]

7F.

Disposal of claims or objections, if any.

- Where any claims or objections are filed the Collector shall personally or through a Gazetted Officer, enquire into such claims or objection prepare a report of his finding and the decision which he makes in accordance with the provisions of sub-section (2) of Section 5, sub-section (2) of Section 6, or sub-section (2) of Section, 7, as the case may be.

7G.

Fixation of fair and equitable rent or ground rent under Rules 5, 6 and 7.

- The Collector shall consider the report of enquiry held under Rule 7-E or 7-F and pass an order fixing the fair and equitable rent or ground rent under Rules 5, 6 and 7, as the case may be, if it is proved to his satisfaction that -

(i)

The homesteads referred to in the proviso to sub-section (1) of Section 5 were used by the outgoing proprietor or tenure-holder for the purpose of letting out on rent;

(ii)

the lands referred to in sub-section (1) of Section 6 were in Khas possession of the outgoing proprietor or tenure-holder on the date of vesting;

(iii)

the proprietor's private lands or privileged lands or other lands let out under a temporary lease referred to in clauses (a) or (b) of subsection (1) of Section 6, were in the possession of such temporary lessee on the date of vesting;

(iv)

the lands in the possession of a mortgagee, referred to in clause (c) of sub-section (1) of Section 6, were in the possession of such mortgagee on the date of vesting.

(v)

[The buildings or structures together with the lands on which they stand referred to in sub-section (1) of Section 7, or in Sections 7-D and 7-F, which were in Khas possession of the outgoing proprietor or tenure-holder or industrial undertaking or other industrial unit of the vested estate, at the commencement of the Act, and were used by such proprietor or tenure-holder or industrial undertaking or other industrial unit as Golas, factories, or mills or for other purposes referred to in sub-section (1) of Section 7 or Section 7-D or Section 7-F before the first day of January, 1946.]

[Substituted by Notification No. G.S.R. 119 dated 15.11.1972.]

7H.

[* * * *]

[Omitted by Notification No. G.S.R. 10 dated 24.1.1970.]

7I.

Preparation of Rent-roll - Form M.

- The fair rent or ground rent determined under these Rules in each proceeding together with the requisite particulars shall be entered in Form M Rent-roll under the signature of the Collector. Such Rent-roll shall form a part of the case record to which it relates.

7J.

[Procedure for settling fair and equitable rent in any area where record-of-rights is being prepared under Chapter X of Act 8 of 1885.

[Inserted by Notification No. 1644, L.R. dated 24.2.1960.]

- In any area where the record-of-rights is being prepared under Chapter X of the Bihar Tenancy Act, 1885, the fair and equitable rent or ground-rent of any land payable under Sections 5, 6 or 7 may, notwithstanding anything contained in Rules 5 to 7 and Rules 7-A to 7-I be settled under Section 109-C of the said Act.]

7K.

to 7U.

[x x x x]

[Omitted by G.S.R. 62 dated 19.9.1981.]

8.

[Appellate Authority under Section 8.

[Substituted by Notification No. 1644 L.R. dated 24.2.1960.]

(1)

An appeal against an order of the Collector under Section 5(2) or Section 6 or 7 shall lie -

(i)

if such order is passed by any officer below the rank of an Additional Collector, to Additional Collector;

(ii)

if such order is passed by any Additional Collector, to the Collector of the district; and

(iii)

if such order is passed by the Collector of a district, to the Commissioner of the division.

(2)

The procedure to be followed by the Appellate Authority in disposing of appeals under sub-rule (1) shall, so far as may be, the same as is provided for civil appeals in the Rules under Order XU of the Code of Civil Procedure, 1908.]

9.

Procedure to be followed by Tribunals appointed under Sections 12(3) [* *]

[Omitted by Notification No. G.S.R. 73, dated 30.5.1973.]

and 31.

- The procedure to be followed by the Tribunal appointed under sub-section (3) of Section 12, [* * *]

[Omitted by Notification No. G.S.R. 73, dated 30.5.1973.]

or under [Section 31]

[Inserted by Notification No. G.S.R. 1644-LR, dated 24.2.1960.]

shall be as follows :-

(1)

A substance of the oral evidence tendered before the Tribunal shall be recorded by the Chairman in the English language and shall form part of the record.

(2)

On the day fixed for the hearing of the case or any other day to which the hearing may be adjourned, the proprietor or tenure holder shall briefly state his case and produce evidence in support of his case. The Collector or his representative shall then state his case and produce evidence, if any, and may then address the Tribunal generally on the whole case. The party beginning may then reply generally on the whole case:

Provided that the Tribunal may admit any evidence at any stage before pronouncing the award.

(3)

The Tribunal shall, after hearing the case, proceed to make its award or order either at once or on some future date to

which the case may be adjourned.

(4)

If on any matter there be no procedure prescribed by the Rules, the procedure laid down in the Code of Civil Procedure, 1908, applicable to a suit, shall be followed by the Tribunal.

10.

Manner of notification of claims by creditor - [Section 14].

(1)

Every creditor, whose debt is secured by the mortgage of, or is a charge on any estate or tenure or part thereof vested in the State under Section 4 [or 3A]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

may, within six months of the date of such vesting or the date on which such creditor is dispossessed under the provisions of clause (g) of Section 4, or within three months from the date of appointment of the Claims Officer, whichever date is later, notify his claim by filing a petition in writing before the Claims Officer giving the following particulars of his claim, namely :-

(i)

name and address of the creditor;

(ii)

name and address of the proprietor or tenure-holder, as the case may be;

(iii)

amount of the principal advanced;

(iv)

number of Tauzi and Khewat number of the estate or tenure mortgaged or charged (if a part of an estate or tenure is mortgaged or charged, the share mortgaged or charged should be stated here);

(v)

a certified or true copy of the document forming the basis of the claim;

(vi)

the amount of interest or the total of the profits from the mortgaged property already realised by the creditor and time or times of realisation of such interests or profits; and

(vii)

any other particulars which may be necessary for the determination of the claim.

(2)

The petition of claim shall be filed in duplicate and shall be verified in the manner laid down in the Code of Civil Procedure, 1908 for the verification of plaints.

11.

Determination of amount due to creditor - [Section 16].

(1)

On receipt of the statement of claims, the Claims Officer shall serve a notice [in Form O (1)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

on the proprietor or tenure-holder of the estate or tenure together with a copy of the statement of claims filed by the creditor under Rule 10 and call upon the proprietor or tenure-holder to file a written statement within 15 days of the service of the notice or such further times as the Claims Officer may allow. If the claim is admitted by the proprietor or tenure-holder, the Claims Officer shall determine the principal and the interest in the manner provided in sub-section (2) of Section 16.

(2)

If the claim is not admitted, the Claims Officer shall give reasonable opportunities to both the parties for producing evidence and of being heard and then proceed to determine the principal and interest in the manner provided in subsection (2) of Section 16. If the proprietor or tenure-holder fails to submit his written statement without any just or reasonable ground within the period allowed by sub-rule (1), the Claims Officer may proceed to determine the claim ex-parte.

(3)

The Claims Officer shall record a summary of the evidence tendered and briefly state the reasons for coming to a

decision regarding the principal amount and interest.

(4)

Save as is otherwise expressly provided in these Rules, the Claims Officer shall, in hearing and disposing of claims filed under Section 14, follow, so far as may be, the same procedure as is provided in the Code of Civil Procedure, 1908, for the hearing and disposal of suits;

12.

Rate of interest admissible under Section 16(2)(e).

- The rate of interest admissible under clause (e) of sub-section (2) of Section 16 shall be as follows, namely :-

(a)

3 Per centum per annum simple interest, if the principal ascertained exceeds Rs. 50,000 but in no case shall the amount of interest calculated on any such principal be less than the amount calculated on any such principal under clause (b);

(b)

4 per centum per annum simple interest, if the principal ascertained exceeds Rs. 10,000 but does not exceed Rs. 50,000, but in no case shall the amount of interest calculated on any such principal be less than the amount calculated on any such principal under clause (c);

(c)

5 per centum per annum simple interest, if the principal ascertained exceeds Rs. 5,000 but does not exceed, Rs. 10,000, but in no case shall the amount of interest calculated on any such principal be less than the amount calculated on any such principal under clause (d);

(d)

6 per centum per annum simple interest, if the principal ascertained is Rs. 5,000 or less than Rs. 5,000.

12A.

[Co-ordination between the Claims Officer and the Compensation Officer under Section 24(5).

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- Where the interest of an intermediary is subject to a mortgage or charge, the Claims Officer shall, immediately after the creditor holding such mortgage or charge submits his claim in writing in respect thereof to the Claims Officer under Section 14(1), send an intimation of the claim to the Compensation Officer concerned with a copy of the petition of claim filed by the creditor before the Claims Officer under Rule 10.

(2)

On receipt of the intimation about any claim under sub-rule (1) the Compensation Officer shall communicate to the Claims Officer concerned the amount of compensation tentatively determined by him in respect of such interest, and shall not finally determine the amount of compensation in respect thereof till the amount of debt payable to the said creditor, or if there are more than one creditor, the amount of debt payable to each creditor, under Chapter IV of the Act, is communicated to him by the Claims Officer under sub-rule (3) for the purpose of adjustment under Section 24(5).

(3)

For the purpose of ensuring that the total amount of debt payable under Chapter IV of the Act does not exceed the amount of compensation payable in respect of such interest, as provided in Section 24(5) the Claims Officer shall communicate to the Compensation Officer concerned the amount of principal and interest, if any, payable to the creditor, or if there are more than one creditor, the amount of principal and interest, if any, payable to each creditor in respect of such interest under Chapter IV that may have been tentatively determined by him, keeping in view the amount of compensation tentatively determined by the Compensation Officer and communicated by him to the Claims Officer under sub-rule (2).]

13.

Disposal of appeals under sub-section (2) of Section 18.

- In hearing and disposing of appeals filed under Section 17, the Board shall so far as may be, follow the same procedure as is provided in the Rules under Order XLI, of the Code of Civil Procedure, 1908 for the disposal of Civil appeals.

14.

[Procedure for ascertaining gross assets under Section 22.

[Substituted by Notification No. 7369 L.R., dated the 28th/30th September, 1959.]

(1)

The rent shall be determined under paragraph (ii) of clause (2)(b) of Section 22 in respect of Gairmazrua Khas, or Gairmazrua malik or parti lands appertaining to an estate or tenure of a proprietor or tenure-holder vested in the State on the basis of the rents recorded by the lowest class of land in the last survey settlement records and where there is no such records, shall be fixed on the basis of the existing rental for similar lands in the vicinity.

(2)

In determining the annual rent under paragraph (iv) of clause (2) (b) of Section 22 in respect of a building or portion of a building used primarily as office or Kutchery for the collection of rents, the Collector shall after such enquiry as he deems reasonable, ascertain the annual rental according or likely to accrue for similar buildings in the vicinity. The amount thus ascertained after deducting therefrom a sum equivalent to 25 per cent in lieu of depreciation and cost of maintenance shall be deemed to be the annual rent for such building or portion of such building.

(3)

Where the order for the partial or entire remission of rent has been passed under clause (c) of sub-section (1) of Section 112-A of the Bihar Tenancy Act, 1885, or under clause (c) or clause (d) of Section 33-A of the Chota Nagpur Tenancy Act, 1908, in respect of any land the average rent payable for the land during the ten agricultural years preceding the agricultural year in which the date of vesting falls shall be deemed to be the rent determined for the land under paragraph (v) of sub-section (b) of clause (2) of Section 22:

Provided that the "average rent" in respect of any land affected by the Kosi floods shall be deemed to be 50 per cent of the annual rent payable before abatement unless the landlord proves that the average rent realised by him during the period of twenty years preceding the agricultural year in which the date of vesting falls is more than 50 per cent of the annual rent payable before abatement and in that case the average annual rent realised during the said twenty years shall be deemed to be the average rent.]

15.

Mode of preparation of the Compensation Assessment Roll.

(1)

The Compensation Officer shall issue a notice in Form D to each proprietor and each tenure-holder calling upon him to file a return furnishing the particulars and information on the point specified in the said notice within a period not exceeding one month from the date of service of such notice or such further time as the Compensation Officer may allow. The net income of a proprietor or tenure-holder shall be calculated in Form E.

(2)

The Compensation Officer shall prepare Compensation Assessment Roll in Form G for each compensation-holder. If the interest of a proprietor or tenure-holder lies within the jurisdiction of more than one Compensation Officer, the Compensation Officer of the area in which such proprietor or tenure-holder re-sides or, if he is a person residing outside the State, the Compensation Officer of the area in whose jurisdiction he has the largest amount of income shall calculate the net income and prepare the Compensation Assessment Roll.

(3)

The Compensation Officer shall give reasonable opportunity to the proprietors, tenure-holders and other persons concerned to be heard and to place before him evidence before finalising the roll. He shall record a brief summary of the evidence and record his finding.

15A.

[Rates of deduction on account of the cost management where the gross asset exceeds Rs. 15,000.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- For the purposes of computing the net income under Section 23, where the gross asset of an intermediary exceeds Rs. 15,000, the cost of management shall subject to the proviso to clause (e) of subsection (1) of the said Section be calculated at the following rates, namely :-

Amount of gross asset

Rates

(1)

Where the gross asset exceeds Rs. 15000 but does not exceed Rs. 50,000.

...

15 per centum of such gross asset

(2)

Where the gross asset exceeds Rs. 50,000 but does not exceed Rs. 1,00,000

...

17 ½ per centum of such gross asset.

(3)

Where the gross asset exceeds Rs. 1,00,000.

...

20 per centum of such gross asset.]

15B.

[Inflation in the returns by outgoing superior landlords of amounts of rent and cess alleged to be realised from their immediately subordinate tenure holders.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

(1)

Where any outgoing superior landlord has filed returns in compliance with the notice (Form D) under Rule 15, or under Section 3-B(3) showing the amounts of rent and cess payable to him by his immediately subordinate tenure-holders, the Compensation Officer shall verify in each case whether these amounts have been inflated with an ulterior motive to get higher compensation. For this purpose, the Compensation Officer will find out the names of such subordinate tenure-holders and ascertain if they have also filed similar returns in respect of their own tenures. If so, the Compensation Officer will verify the amounts of rent and cess payable to the superior landlord in respect of the subordinate tenures, as shown in the returns filed by the subordinate tenure-holders, with the amounts of rent and cess payable to the superior landlord by his immediately subordinate tenure-holders, as shown in the superior landlord's return. Where these two figures tally, it may be presumed that the amounts of rent and cess, as shown in the superior landlord's returns, are correct, and have not been inflated. But where these figures do not tally and particularly, when the superior landlord's figures are higher than those of his immediately subordinate tenure-holders, an inflation of figures as shown in the superior landlord's returns, may be presumed, and shall be enquired into, to ascertain the correct figures. In such a case, the Compensation Officer shall require, under Section 40, both the parties to file by an appointed date, the documents, viz. counterfoils of rent-receipts, jamabandis, rent-receipts, certified copies of judgments and decrees in rent suits, if any etc. on which they rely, and examine them along with the relevant Khewat-Part III and find out correct amounts of rent and cess payable to the superior landlord in respect of the subordinate tenures in question.

(2)

Where no such returns have been filed by the immediately subordinate tenure-holders, the Compensation Officer shall require them under Section 40 to produce their rent-receipts as well as other documents showing the correct amounts of annual rent and cess payable by such subordinate tenure-holders to their superior landlords. In addition, the Compensation Officer shall examine the relevant Khewat - Part III, and shall also call upon such defaulting tenure-holders to file by an appointed date, their returns in respect of their own tenures, and on receipt thereof shall proceed with the verification in the manner provided in sub-rule (1).]

16.

Determination of money value of service or obligation to which an estate or tenure is subject - Section 23(1)(i)(g).

- Where an estate or tenure is held in lieu of the performance of any service or obligation ordinarily performed on payment of remuneration, or where the estate, or tenure is held burdened with any service or obligation, the service or obligation shall be commuted into cash on the basis of the average money value of such service or obligation for the last preceding ten years.

17.

Apportionment of compensation between lessees and superior land-lords under Section 24(2).

- The holder of a temporary lease of an estate or tenure shall, by way of compensation, be entitled to the advance, if any, made by him [* * *]

[The words and figures 'together with a sum equivalent to 50 per centum of the legally recoverable arrears of rent due to him' omitted by Notification No. 4017-LR, dated 31.5.1962.]

. The unexpired period of the lease shall be considered only when any advance adjustable on expiry of the term of the lease has been made by the temporary lessee. In such a case the amount of such advance shall be reduced in the

same proportion as the unexpired period of the lease bears to the total period thereof. The compensation payable to the temporary lessee shall be calculated in Form H.

18.

Computation of compensation for mines and minerals under Section 25 (1).

- The Compensation Officer shall issue a notice to the proprietor or tenure-holder in respect of royalties on account of mines and minerals or in respect of income from mines worked directly by him comprised in the estate or tenure, calling upon such proprietor or tenure-holder as the case may be, to file a return within 30 days of the service of the notice or such further time as may be allowed by the Compensation Officer, furnishing the following particulars, namely :-

(a)

description of mines and minerals;

(b)

boundaries of the mines;

(c)

name of the estate or tenure in which the mine is situated;

(d)

gross annual income from royalties or gross income from mines worked directly by the proprietor or tenure-holder, as the case may be, during each of the previous 12 years on the basis of the annual returns filed by the proprietor or tenure-holder, as the case may be, for the assessment of cess or income-tax during the period of 12 agricultural years preceding the agricultural year in which the date of vesting falls or any shorter period for which returns have been filed; and

(e)

income-tax [and cess]

[Inserted by Notification No. 1644 LR. dated 24.2.1960.]

paid and payable every year on the royalty on the gross income from mines, as the case may be.

(2)

On receipt of the returns, under sub-rule (1), the Compensation Officer shall proceed to determine the net annual income in [Form F.,]

[Substituted by Notification No. 1644 LR. dated 24.2.1960.]

19.

Computation of net income from mines and minerals and determination of compensation payable therefor - Section 25(2).

- In computing the net income of a proprietor or tenure-holder under sub-section (2) of Section 25 from royalty [* * *]

[Repealed by Notification No. 1644 LR. dated 24.2.1960.]

the deduction to be made from the gross income on account of cost of collection shall be at the following rate, namely :-

(a)

where the gross income exceeds Rs. 50,000 - 10 per cent of such gross Income;

(b)

where the gross income exceeds Rs. 25,000 but does not exceed Rs. 50,000 - 8 per cent of such gross income;

(c)

where the gross income is Rs. 25,000 or below - 4 per cent of such gross income:

Provided that the deduction shall be subject to marginal adjustment in whole rupee, so that the net income of a proprietor or tenure-holder falling within a higher income group is not reduced to an amount which is less than the amount of the net income of a proprietor or tenure-holder falling within a lower income group.

20.

Manner of calculation of compensation when the interest of proprietor or tenure-holder entitled to receive royalty or directly working a mine lies within the jurisdiction of more than one Compensation Officer.

- If the interest of a proprietor or tenure-holder entitled to receive royalty or directly working a mine lies within the jurisdiction of more than one Compensation Officer, each Compensation Officer shall fill up columns 1 to 3 (a) and columns 5 to 6(a) of Form F and the rest of the columns shall be filled up by the Compensation Officer of the area in which such proprietor or tenure-holder has the largest amount of income.

20A.

[* * * * *]

[Omitted by GSR 62, dated 19.9.1981.]

21.

[Manner of publishing Draft Compensation Assessment Roll under Section 26(1).

[Substituted by Notification No. 1644, LR, dated 24.2.1960.]

(1)

After the draft of the Compensation Assessment Roll under Sections 19, 24-A, 25 or 30-A as the case may be, has been prepared, the Compensation Officer, with the approval of such authority as may be notified by Government in this behalf shall publish the same by affixing a copy thereof together with a public notice in Form P(6) to the notice board of the office where the draft Compensation Assessment Roll has been prepared. The Compensation Assessment Roll should be published for a period of 30 clear days. The record shall be kept in charge of Compensation Officer who shall give every facility to all persons for inspecting the Compensation Assessment Roll. Any person interested in the Compensation Assessment Roll may be allowed to take relevant extracts thereof. But if any person asks for a copy of the roll, it shall be issued on payment of the charges laid down in the Bihar Records Manual, 1951. The Compensation Officer shall also invite objections within 60 days after the expiry of the period of publication.

(2)

On the expiry of [the period fixed for entertaining objections], the Compensation Officer, after giving reasonable notice to the person interested in the objection, shall hear the parties on the objection and shall receive such evidence as he may consider necessary. The Compensation Officer, after hearing the parties, may either reject the objection, modify any entry or entries made in the draft Compensation Assessment Roll or uphold the entries made therein.]

22.

Manner of disposal of appeals under Section 27.

- In hearing and disposing of appeals filed under Section 27, the procedure laid down in Order XLI of the Code of Civil Procedure for the disposal of Civil appeals shall be followed so far as may be.

23.

Manner of final publication of Compensation Assessment Roll under Section 28.

- After all objections and appeals have been disposed of in respect of any Compensation Assessment Roll or after the period for filing an appeal has expired, the Compensation Officer shall publish the Compensation Assessment Roll by affixing it to the notice board of the office of the Sub-divisional Officer or Collector of the Sub-division or district in which the Compensation Assessment Roll has been prepared.

24.

Period within which the certificate is to be made under Section 29.

- The period within which the certificate is to be made under Section 29 shall be 30 days from the date of final publication of the Compensation Assessment Roll.

25.

Rules under Section 32 (4).

- All suits, appeals or proceedings relating to a dispute about the interest of a proprietor or tenure-holder in an estate or tenure, or part of an estate or tenure or about the partition of an estate or tenure by metes and bounds, in respect of which compensation is payable pending on the 31st March, 1948, in any Court other than the Supreme Court and remaining undisposed of at the date of vesting shall, on the application of any party to such suit, appeal or other proceeding, if filed within 60 days of the date of vesting, be stayed and all matters in dispute shall be referred to a Tribunal to be appointed by the State Government in this behalf.

(2)

As soon as the Court decides to refer a dispute to a Tribunal under subsection (4) of Section 32, it shall give a notice of its decision to the State Government in the Revenue Department and to the parties; whereupon each party shall within a period of 30 days of the service of such notice send its recommendation to the State Government in the Revenue Department for the appointment of the member to represent it on the Tribunal.

(3)

After the Tribunal has been constituted, the fact shall be communicated to the Court concerned, whereupon the Court shall refer the dispute to the Tribunal and shall at the same time transmit the record of the case to the Chairman of the Tribunal.

25A.

[Manner of calculating ad-interim payment in advance under the first proviso to section 33.

[Substituted by GSR 62 dated 19.9.1981.]

- For the purpose of making ad interim payment in advance to trusts under the first proviso to Section 33, the approximate amount of such trust shall be computed on the basis of the net income calculated in accordance with Rules 25B to 25D.]

25B.

[Procedure for ascertaining gross assets.

[Substituted by GSR 62 dated 19.9.1981.]

- The gross assets (other than mines and minerals comprised therein) of a trust shall be calculated in the following manner namely :-

(1)

Where the trust supplied all the particulars relating to their intermediary interests, and the Jamabandi (that is collectable Jama for rent and cess including income from sairats) filed by them has been found to be substantially correct after field check, the approximate gross assets shall be calculated on 100 per cent of such Jama.

(2)

Where the trust has not furnished plot numbers and their areas, but has supplied the other particulars mentioned in sub-rule (1) and the Jamabandi filed by them is found to be substantially correct after check, the approximate gross assets shall be calculated on 100 per cent of such jama.

(3)

Where it is not possible to verify expeditiously the jamabandi filed by a trust but on a preliminary scrutiny it is prima facie acceptable the approximate gross assets shall be calculated on 10 percent of such jama:

Provided that the details of the jambandi shall be verified as soon thereafter as possible.

(4)

Where the Jamabandi filed by the trust has not been verified in all or where no Jamabandi has been filed at all, but it has been possible to make collections for one full year in respect of the interests of the trust, the approximate gross assets shall be calculated on 100 percent of the actual collection for that year.

(5)

Where it has not been possible for the Collector to determine the annual rents for Gairmazarua Khas, Gairmazarua Malik or Parti lands or for building used primarily as cutcheries or the fair and equitable rents for the lands saved to them under Sections 5, 6, or 7 the Collector may calculate the approximate gross assets without taking these items into account for the time being subject to adjustment being made later on.

(6)

The income of the trust from forests may for the purpose of calculating the gross assets, be calculated at the flat rate of 20 paise per acre of the area under forests:

Provided that if the area under forests is not readily available from the Chief Conservator of Forests, the approximate gross assets may be calculated without taking into the account for the time being the said income, subject to adjustment being made later on.]

25C.

[Procedure for ascertaining approximate net income.

[Substituted by G.S.R. 62 dated 19.9.1981.]

- The Collector shall prepare the approximate net income of a trust from its estates and tenures (other than mines and minerals comprised therein) after making deduction on account of the items mentioned in Section 23(1) from the approximate gross assets calculated in accordance with Rule 25B.]

25D.

[

[Substituted by G.S.R. 62 dated 19.9.1981.]

The Collector shall prepare an estimate of the net income of a trust from mines and minerals comprised in its estate or tenures mutatis mutandis, in the manner specified in Rules 18, 19, and 20.]

25E.

[Procedure of determining the approximate amount of annuity.

[Substituted by G.S.R. 62 dated 19.9.1981.]

(1)

The approximate amount of annuity in respect of trust for intermediary interests other than in mines and minerals shall be equal to the approximate net income arrived at in the manner laid down in Rule 25C.

(2)

The approximate amount of annuity payable for mines and minerals comprised in the intermediary interests of a trust shall be equal to the estimate of the net income arrived at in the manner laid down in Rule 25D.

(3)

The approximate amount of annuity payable to the trust shall be arrived at by adding the approximate amount of annuity payable for mines and minerals to the approximate amount of annuity in respect of his other interests.]

25F.

[Procedure for sanctioning ad-interim payment when reports from all districts not available.

[Substituted by G.S.R. 36 dated 16.3.1972.]

- Where delay occurs in the receipt of reports from other districts in respect of the intermediary interest of a trust lying in those districts the Collector of the district in which the major portion of its interest lies shall take action to sanction the ad-interim payment to it on the basis of the materials available in respect of the interest lying in the district, subject to adjustment being made later on.]

25G.

Special procedure for making ad interim payments in certain cases.

(1)

(a)

Where ad interim payment is to be made to the members of an undivided Hindu family who, under Section 20 are entitled to be treated separately for the purpose of assessment but the full details of such members are not available or have not been furnished and verified the ad interim payment may be calculated treating the family as one unit and not assessing the ad interim payment separately in respect of each co-sharers, & ad interim payment may, subject to future adjustments, be sanctioned and paid to the Karta or any adult member of the family on behalf of all the co-sharers including minors on his producing letters of authority from them empowering the Karta or the adult member to receive payment on their behalf and after obtaining from such Karta or adult member an indemnity bond in Form O(2).

(b)

Where ad interim payment is to be made to a minor, who is the solitary claimant to such payment the payment shall be made to the minor's guardian after obtaining from him an indemnity bond in Form O(2).

(2)

Where there is a genuine dispute about the interests of an intermediary in an estate or tenure or part of an estate or tenure or in respect of his right to receive compensation or annuity, the Collector shall withhold such ad interim payment to the extent disputed until such time as the dispute is decided by a competent court.

(3)

Before making ad interim payment in respect of a trust, the Collector shall obtain from the payee concerned a security bond in Form O.

25H.

Procedure for making ad interim payments.

(1)

No ad interim payment shall be calculated in any unit less than a naya paise, and any fraction thereof shall be rounded off to the nearest naya paisa.

(2)

The Collector shall prepare in Form I, for the half-year ending the 30th September or the 31st March each year, a list of persons to whom ad interim payments have been sanctioned or paid by him from time to time and forward a copy of it to the State Government in the Revenue Department through the Collector of the district and the Commissioner of the Division. The authority sanctioning the ad interim payments should be clearly indicated in column 12 of the Form. At the same time the Collector of the district shall publish a copy of the list in his office as soon as possible, and also send another copy of it to the Accountant General Bihar, for the purposes of audit.

(3)

The amount sanctioned as ad interim payment will be drawn from the treasury by the outgoing intermediary by a bill in T.C. Form No. 96. The bill will be drawn up in the office of, and countersigned by the Collector sanctioning the ad interim payment. Where, however, the ad interim payment is sanctioned by the Divisional Commissioner, under delegated powers or by the State Government, the bill in T.C. Form No. 96 shall be drawn up in the office of and countersigned by the Collector or Additional Collector of the district. One bill form may be used for each outgoing intermediary, but it may comprise payments relating to a number of estates and tenures belonging to him. After countersignature, the bill will be entered in the register of ad interim payments in Form J(1) and an Advice List will be sent by the Countersigning Officer to the Treasury Officer in Form J(2) sufficiently in advance of the bill. The Advice List will bear continuous serial number for each financial year. The bill will be handed over to the payee after obtaining his receipt on the register in Form J(1) as well as on the order-sheet of the case record. The officer concerned will make a note of the payments in column 9 of Form J(1) on receipt of the lower portion of the Advice List from the Treasury Office.

(4)

[(a) If the person receiving ad interim payment dies, the Collector shall hold enquiry as to the person entitled to receive the ad interim payment and the payment shall be made to the person held entitled thereto.

(b)

In case the probable amount of compensation exceeds five thousand rupees and if, on enquiry, the claim of the person held entitled thereto is not disputed, the payment shall be made to him on furnishing an indemnity bond.

(c)

In case the succession is disputed the person claiming to be a successor-in-interest shall be asked to file a certificate of succession under the Indian Succession Act, 1925 (Act XXXIX of 1925), and the payment shall be made in accordance with such certificate.]

(5)

The payee may personally present the bill at the Treasury or endorse it in favour of any other person for collection as provided in Rule 177 of the Bihar Treasury Code.

(6)

Where an intermediary does not attend either in person or through a duly authorised agent to receive the ad interim payment the Collector may draw the amount from the Treasury, "by transfer credit to postal head". But before the bill is presented to the Treasury, the Collector shall, under his dated signature, record an endorsement thereon to the effect - "Received payment by transfer credit to postal head" and a money order form for the amount, less the money order commission, shall also be drawn up in the name of the payee and attached to the bill.

On receipt of the bill with the money order form, the Treasury shall issue a postal transfer order Form, and after attaching the same to the Money Order form, forward it to the Postmaster for remittance of the amount to the payee concerned for payment. The Treasury shall send to the Collector the Money Order receipt granted by the Postmaster together with the lower portion of the Advice List. The money order receipt shall be attached to the case record concerned and an endorsement on the order sheet of the case record shall be made to the effect - "The amount has been sent by Money Order vide Postal Receipt no.... dated

On receipt of the Money Order acknowledgement from the payee it shall be pasted in the register of ad interim payment in Form J(1).

25I.

Adjustments.

(1)

Where ad interim payment is made under Section 33(1) (c) to an intermediary towards annuity payable under Section 24(3), such ad interim payment shall be regarded as advance towards, and adjusted against, the perpetual annuity payable from the date of vesting of the interest of the intermediary when it is finally determined under Section 24(3).

(2)

Where ad interim payment has been made to an intermediary and such payment is subsequently found to be in excess of 2 ½ per cent per annum of the amount of compensation payable under Section 32, the excess payment so made shall be deducted from the amount of compensation payable to him in the manner indicated below:

(i)

before making the preliminary publication of the Compensation Assessment Roll under Section 26, the Compensation Officer shall ascertain from the Collector of the district the total amount of ad interim payment made under Section 33

and deduct, from the amount of compensation, any ad interim payment made in excess of 2 ½ per cent per annum of such compensation, and the draft publication of the said roll shall then be made in respect of the net amount of compensation after such deduction;

(ii)

similarly, before making the final publication of the Compensation Assessment Roll under Section 28, the Compensation Officer shall proceed in the same manner and deduct from the amount of compensation any ad interim payment made in excess of 2 ½ per cent per annum of such compensation, and the final publication of the said roll shall then be made in respect of the net amount of compensation after such deduction;

(iii)

any further ad interim payment due from the date of the final publication of the Compensation Assessment Roll up to the date of payment of compensation under Section 32 (2) shall be made subject only to necessary deductions to be made from the amount of compensation paid under Section 33(2);

(iv)

the Collector shall maintain in Form J a register of all ad interim payments made to outgoing intermediaries. This register will contain personal accounts of each outgoing intermediary with an alphabetical index of such intermediaries for purposes of reference. In order to watch the progress of the payments made, this register should be closed every half-year ending the 30th September and the 31st March with a memo in the following form :-

Memo

(i)

(a)

total number (name or register, page, reference may be given) of ad interim payment due during the half year ending 30th September/31st March, 200.....

(b)

total number of payments already advised to Treasury for payment;

(c)

total number of payments actually made by Treasury:

(d)

items due for payment but not authorised or paid during the half year with details, viz, (a) - (b) and (b) - (c);

(e)

Collector's order on (d).

(ii)

A separate register containing particulars of ad interim payments to every intermediary shall be maintained by the Collector of every district in Form J(1) and verified once a week with the Register of ad interim payment Orders ontreasury which shall be maintained in the Treasury in T.C. Form No. 97.

25J.

[x x x x x]

[Omitted by GSR. 62, dated 19.9.1981.]

26.

Constitution and function of the Bihar Land Commission under Section 34.

(1)

The members of the Bihar Land Commission shall hold office for a period of five years from the date on which their election or appointment is notified in the Official Gazette:

Provided that a member elected as a representative of the Bihar Legislative Assembly or the Bihar Legislative Council shall be deemed to vacate office with effect from the date on which he ceases to be a member of the Assembly or the Council which elected him.

(2)

If any member is, by reason of his death, resignation or otherwise, unable to complete his full term of office, the vacancy so caused shall be filled by the election or appointment, as the case may be, of another person, and the person so elected or appointed shall fill such vacancy for the unexpired remainder of the term for which such member would otherwise have continued in office.

(3)

There shall be at least one meeting of the Commission during each quarter of the year.

(4)

The Commission may advise the State Government on such matters as may be brought up in a meeting of the Commission with the approval of the Chairman.

(5)

The election of members by the Bihar Legislative Assembly and by the Bihar Legislative Council shall be held in accordance with the system of proportional representation by means of a single transferable vote.

27.

[Bihar Zamindar/Abolition Compensation Bonds.

[Inserted by Notification No. 7534 L.R., dated 29.10.1959.]

- Subject to Rules 28 and 29, the amount of compensation under sub-section (2) of Section 32 in terms of a Compensation Assessment Roll as finally published shall be paid in cash and/or negotiable and transferable bond which shall be described as Bihar Zamindari Abolition Compensation Bonds, (hereinafter referred to as "Bonds")

[Provided that where it is intended to pay an amount not exceeding fifty per centum of the approximate amount of compensation to an outgoing intermediary under Section 32-A, the amount payable under Rule 39 shall be paid in cash and/or bonds according to the procedure, so far as may be, laid down in Rules 27 to 38.]

[Substituted by GSR 36, dated 16.3.1973.]

28.

Denomination of Bonds.

- The Bonds shall be issued in denomination of Rs. 50, Rs. 100, Rs. 200, Rs. 500, Rs. 1,000, Rs. 5,000 and Rs. 10,000.

29.

Cash payments in case of - (a) amount not covered by Bonds; (b) amount of compensation not exceeding Rs. 50.

(1)

Subject to sub-rule (2) all such amount as cannot be covered by Bonds shall be paid in cash.

(2)

Where the total amount of compensation payable to an intermediary does not exceed Rs. 50 it shall be paid in cash.

(3)

No interest is payable on cash payments under sub-rules (1) and (2).

(4)

The amount of compensation payable in cash under this Rule shall be rounded off to the nearest Naya Paisa.

30.

[Indent for Bond - Form N.

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

(1)

The Bonds shall be issued by the Public Debt Office, Patna, on a requisition by the Collector of the district who shall, subject to Rule 34, prepare an indent in Form 'N' in consultation with the Compensation Officer, and submit it in triplicate to the Public Debt Office, Patna for compliance. At the same time the Collector of the district shall submit, in duplicate, to Government in the Revenue Department (Land Reforms Section) an advice of such indent intimating (a) the Indent number, (b) Anchal/Sub-Division/District to which the Indent relates, (c) the total number of Bonds and (d) the value of Bonds indented for. The Revenue Department will in due course forward one copy of advice to the Finance Department:]

[Provided that where the compensation or part thereof is payable to a temporary lessee under Section 24(2) or to a creditor under Section 24(5) the Bonds in respect to such payment shall be prepared in the name of the temporary lessee or the creditor, as the case may be, and the indent for such Bonds shall also be prepared accordingly.]

[Substituted by Notification No. 4017-LR dated 31.5.1962.]

(2)

The Bonds shall be encased for payment of instalments and interest at such Treasury and shall be transmitted by the Public Debt Office to such Treasury Officer as may be indicated in the Indent for the purpose:

Provided that instalments and interest on a Bond may be made payable at any Treasury or Sub-Treasury in the State of Bihar. [4]

[Repealed by Notification No. 339-LR, dated 14.1.1960.]

(3)

Before submission of an Indent, the Collector shall fill up [columns 1 to 8]

[Substituted by Notification No. 339-LR, dated 14.1.1960.]

of Form 'N' and sign and seal each copy after satisfying himself that the entries have been correctly made therein, and shall also enter in words in his own handwriting, the total value of the Bonds indented for both in the original and the copies thereof. The original shall be retained in his office and pasted in a Guard-file in order of issue, each page whereof shall be numbered. Each copy of the Indent shall also bear the page numbers of the original.

(4)

While preparing an Indent for Bonds in Form N, the Compensation Officer, shall exercise due care and caution to verify all the details, particularly, those given in column 3 (name of estate with Tauzi number) and column 4 (Khewat number in case of tenure), and satisfy himself that an intermediary, who has once received a compensation, does not get it again and that a Tauzi or a tenure, for which compensation has once been assessed, does not by mistake or otherwise find place in another compensation assessment case.

(5)

Register of Indents for Bond. - Form N. - The Collector as well as the Compensation Officer shall maintain a Register of indents for Bonds in Form N(1) in which all such indents shall be entered.

[Explanation - In this Rule the expression "the Collector of the District" or "the Collector" includes an officer appointed as Additional Collector of Indents upto the value of Rs. 1,000 an officer not below the rank of Deputy Collector placed in charge of Land Reforms work.]

[Substituted by G.S.R. 122, dated 26.11.1970.]

31.

Covering Schedule Form N (2).

(1)

The Public Debt Officer, [Patna]

[Substituted by Notification No. 339-LR, dated 14.1.1960.]

shall on receipt of the Indent [in triplicate]⁴ supply the Bonds indented for the Treasury Officer concerned, together with a covering Schedule in duplicate, in Form N(2). The Public Debt officer shall, at the same time, send an intimation of despatch of the Consignment to the Treasury Officer separately. On receipt of the consignment, the Treasury Officer shall after proper verification of its contents, retain one copy of the covering Schedule in a Guard file in order of receipt and return the other copy immediately to the Public Debt Office [Patna]

[Substituted by Notification No. 339-LR, dated 14.1.1960.]

, with an acknowledgement which shall be duly signed and sealed by him.

(2)

[The Public Debt Office, Patna shall also forward two copies of the said covering Schedule to the Government of Bihar in the Finance Department who will send one copy to the Revenue Department (Land Reforms Section) for information and record. At the same time the Public Debt. Office, Patna shall forward two copies of the indent to the Indenting Collector and the Compensation Officer concerned after entering in columns 9 and 10 the particulars of the Bonds issued. The Collector as well as the Compensation Officer will, on receipt of the copies of indent each enter the particulars thereof in columns 7 to 10 and put his signature in column 11 of the Register of indents for Bonds, [Form N(1)] maintained by him.]

[Substituted by Notification No. 339-LR, dated 14.1.1960.]

32.

Deposit of Bonds In Treasury.

(1)

The Treasury Officer shall deposit the Bonds, when received, in the Treasury double lock and send an intimation to the Collector of the receipt of the particular Indent, who will immediately inform the Compensation Officer about such receipt. In case of non-compliance of an Indent in full, the Collector will correspond in the matter with Public Debt Office, [Patna]

[Substituted by Notification No. 339-LR, dated 14.1.1960.]

(2)

There should be an independent half-yearly physical verification of Bonds stocked in the Treasury either by the Additional Collector himself or by an officer unconnected with the Treasury to be nominated by the Collector for the purpose. The date and result of verification indicating therein the number of Bonds received and issued to the Compensation Officers and the Treasury, should be recorded under the signature of the verifying Officer in the Stock and issue Register prescribed under sub-rule (3) and reported to [x x x]

[Repealed by Notification No. 339 LR, dated 14.1.1960.]

the Government in the Finance Department.

(3)

The Treasury Officer will maintain a Stock and Issue Register of Bihar Zamindari Abolition Compensation Bonds in Form N(16) containing an account of receipts, issues and balances. The closing balance should be struck on each day on which there is a receipt or issue, and should be signed by the Treasury Officer. This register should be kept along with the Bonds in the double lock.

33.

Tendering payment of compensation in Bonds and/or in cash.

(1)

On receipt of an intimation from the Collector about the receipt of the Bonds under Rule 32, the Compensation Officer shall tender payment of the amount of compensation to the Compensation-holder in Bonds and/or in cash as prescribed in Rules 28 and 29 except in the cases referred to in Rule 38.

(2)

[Notice to Compensation-holder, Form N(3) - Register of payment of compensation in Bonds/Cash - Form N(5). - The Compensation Officer shall issue a notice in Form N(3) to the Compensation-holder directing him to take delivery of the Bonds and/or to receive payment of the amount payable in cash on a specified date and at a specified place either in person or through his duly authorised agent and shall, on the specified date and place deliver the Bonds and/or make payment in cash to the compensation-holder or his duly authorised agent.

The amount of Compensation payable in cash under Rule 29 shall be drawn by the Compensation Officer under head "563 Payment of Compensation..... payment in Cash" from the Treasury/Sub-Treasury in T.C. Form No. 76. Before making such delivery of the Bonds and/or making such payment in cash, the Compensation Officer shall enter the particulars in Columns I to II of the Register of payment of Compensation in Bonds/Cash in Form N(5). the Compensation holder or his agent, who shall be duly identified before the Compensation Officer, shall acknowledge receipt of the Bonds and/or Cash and shall also put his signature or left thumb impression (in case of illiterate persons) in column 12 of the said Register. The Compensation Officer shall then attest the entries by putting his dated signature in column 13 of the said Register:

Provided that in the case of payment under Section 32-A of fifty percent of the approximate amount of compensation, the Compensation Officer shall issue a notice in Form N(3A) and not in Form N(3), to the Compensation holder for the purposes specified in the forgoing paragraph. The notice in Form N(3A) shall invariably be given in all cases of payment of Compensation in accordance with the provisions of Section 32-A including those in which the amount of deductions to be made exceeds the amount of such fifty percent of compensation and in which no indent for Bonds is required to be submitted for the purpose of payment under the said Section.]

[Substituted by G.S.R. 44 dated 1.4.1974.]

(3)

Requisition for Bonds, Form N(8) Register in Form N(16). - The Compensation Officer shall personally draw from the Treasury the Bonds for issue on a Requisition for Bonds in Form N(8) and shall put his signature in column 10 of the Treasury Stock and Issue Register in Form N(16) in token of acknowledgement of receipt. Each such requisition shall relate only to the Bonds to be issued on a specified date according to the notice under sub-rule (2). The Compensation Officer will be personally responsible for safe custody of bonds while in his possession.

(4)

[If the notice under sub-rule (2) has been duly served in accordance with the provisions of Rule 3 and the Compensation-holder in spite of service does not appear in person or through his duly authorised agent to take delivery of the Bonds and/or the Cash on the specified date and specified place, the Compensation Officer shall deposit with the Collector of the district the, Bonds and the receipt of "Revenue Deposit" in respect of the Cash deposited in the Treasury through Challan (T.C. Form No. 8).

The Collector shall give an acknowledgement to the Compensation Officer for the aforesaid Bonds and the receipts deposited with him and keep the Bonds and receipts in a sealed receptacle in his name in the strong room of the Treasury:

Provided that subject to sub-rules (7) and (10) the Collector of the district may on an application, deliver the Bonds and/or the Cash kept under "Revenue Deposit" to the Compensation-holder or his duly authorised agent within a period of three complete years from the date fixed for delivery.]

[Substituted by G.S.R. 44, dated 1.4.1974.]

(4A)

[If at the time of delivery of the Bonds to the compensation-holder, the Compensation Officer finds that the Bond supplied by the Public Debt Office against the indent does not bear correct name of the compensation holder, he shall withheld delivery of the Bond and shall return the Bond to the Collector with a covering letter in duplicate in Form N(22) after making an entry in column 14 of this register of payment of compensation in Bonds/cash Form N(5). When a copy of the covering letter in Form N(22) bearing the acknowledgement of the Collector is received from him, the Compensation Officer shall fill up column 15 and put his own dated signature in column 16 of the Register in Form N(5). He shall then retain the covering letter containing the Collector's acknowledgement in a guard file. The Collector, on receipt of the Bonds from the Compensation Officer shall ascertain the correct name in which the compensation documents are to be prepared and return the Bond to the Public Debt Office, Patna with a covering letter in Form N(23) in duplicate advising the Public Debt Office to correct the name of the compensation-holder in the Bond and also in their records. At the same time, the Collector shall correct the entries in the relative records retained by him under advise to the Government in Revenue and Land Reforms Department and also in the Finance Department. The correction in the name of the compensation-holder in the Bond shall also be intimated to the Treasury Officer concerned.]

[Substituted by G.S.R 44, dated 1.4.1974.]

(5)

[Covering Schedule, Form N(9) - Guardfile of covering Schedules, Form N (9) - The Compensation Officer shall forward the undelivered Bonds and for the receipts for disbursed cash kept in Revenue Deposit soon after the specified date to the Collector, for deposit with a covering Schedule in Form N (9) after making an entry in column 14 of his Register, of payment of compensation in Bonds/cash in Form N(15), When an acknowledgement in the duplicate of the covering schedule is received from the Collector, the Compensation Officer shall fill up column 15 and put his own dated signature in column 16 of the said Register. He will then retain the covering schedule containing the Collector's acknowledgement in a Guard File.]

[Substituted by G.S.R. 44 dated 1.4.1974.]

(6)

[Register of undelivered Bonds and undisbursed amount of the Cash compensation N(10). - The Collector shall maintain a Register of undelivered Bonds and undisbursed amounts of the Cash Compensation in Form N(10) showing the particulars relating to the undelivered Bonds/Receipt of undisbursed amounts cash of Compensation kept in "Revenue Deposit" received by him from the Compensation Officer for deposit.

There shall be annual verification of such undelivered Bonds and undisbursed cash by a Gazetted Officer to be nominated by the Collector for the purpose.]

[Substituted by G.S.R. 44 dated 1.4.1974.]

(7)

Covering Schedule, Form N (11) - Guard File of covering Schedule, Form N (11). - If any Bonds are not delivered within a period of three years under the proviso to sub-rule (4) the Collector shall return them to the Public Debt Office. [Patna]

[Substituted by Notification No. 339 LR dated 14.1.1960.]

for deposit together with a covering Schedule in duplicate in Form N(P). The Collector shall, at the same time make an entry in column 16 of his Register in Form N (10). One copy of the covering Schedule will be retained by the Public Debt Office, [Patna]

[Substituted by Notification No. 339 LR dated 14.1.1960.]

and the other copy returned immediately to the Collector with an acknowledgement of receipt. On receipt of such acknowledgement the Collector shall make an entry to this effect in column 17 of the said Register, and shall retain the covering Schedule containing such acknowledgement in a Guard File.

(8)

Till the undelivered Bonds are returned to the Public Debt Office, [Patna]

[Substituted by Notification No. 339 LR dated 14.1.1960.]

, they shall be kept in the double lock of the District Treasury.

(9)

[Monthly Statement of Payment of Compensation in Cash. - Form N (12). - The Compensation Officer shall prepare a monthly Statement of Compensation in Cash in Form N(12) on the basis of the disbursements made day to day to the Collector not later than the 7th day of the following month. The Collector shall prepare a consolidated statement in duplicate in the same form for the district. The Collector shall then transmit one copy of the same to the Government in the Revenue and Land Reforms Department latest by the 20th day of the month following the month to which the Statement relates.]

[Substituted by G.S.R. 44 dated 1.4.1974.]

(10)

Revalidation of Cash Compensation kept in "Revenue Deposit". - Cash Compensation not claimed for more than three months from the date of notice to the Compensation-holder shall cease to be payable unless an application is filed before the Compensation Officer who will pass necessary orders for payment of the same by the Collector.

(11)

[x x x x]

[Omitted by G.S.R. 44, dated 1.4.1974.]

(12)

[x x x x]

[Omitted by G.S.R. 44, dated 1.4.1974.]

(13)

[Date of issue of Bonds. - The date of issue of Bond by the Public Debt Office, Patna, as mentioned in the Bonds shall be taken as the date of issue for payment of annual instalments and for crediting the value of the Bonds in Form N - Public Debt, etc., by contra-debit to 65 Payment of compensation, etc; on the basis of the monthly return showing the date-wise issue of Bonds received by the Accountant-General, Bihar from the Public Debt office, Patna. In order to ensure correct adjustment of the value of the Bonds in Government accounts the Public debt Office, Patna will at the same time send a copy of the monthly return to the Revenue Department (Land Reforms Section and another copy to the Finance Department by the 10th day of the month following the month to which the return relates.]

[Substituted by G.S.R. 44, dated 1.4.1974.]

(14)

Actual delivery of Bonds. - The Collector shall furnish in Form N (21) to Government in the Revenue Department (Land Reforms Section) by the end of the following week a weekly statement showing the total value of Bonds actually delivered during the preceding week in payment of compensation by the Compensation Officer together with the dates of delivery of such Bonds. The Revenue Department will compile a monthly statement for the whole State in the same form and forward the same to [x x x]

[Omitted by Notification No. 339 LR, dated 14.1.1960.]

the Finance Department and a copy thereof will be sent simultaneously to the Accountant General, Bihar.

(15)

[(a) Where a Compensation-holder dies after the Bonds have been indented but before the Bonds have been delivered and/or payment in cash has been made as prescribed in sub-rule (2), the Compensation Officer shall deposit the Bonds and/or the receipt for cash deposited in "Revenue Deposit" with the Collector in the manner prescribed in sub-rules (4) and (5). Thereafter the procedure prescribed in sub-rules (6), (7), (8), (10) and (11) shall be followed.]

[Added by Notification No. 4017 LR, dated 31.5.1962.]

(b)

[If the quantum of compensation does not exceed five thousand rupees and no probate of Will or Letter of Administration is filed within a period of six months from the date of the death of the Compensation-holder, the Collector shall hold an enquiry as to the persons entitled to receive the Bond and/or cash. If, there is no dispute as to succession and the claimants file an affidavit regarding their shares in the Form prescribed in Form U(3), the Bonds referred to in clause (a) shall be forwarded to the Public Debt Office, Patna, for cancellation and also an indent for issue of fresh Bonds or equivalent amount in the names of the successors-in-interest as adjudged by the Collector, in accordance with

the procedure prescribed in Rule 30. If any amount has to be paid in cash to the successors-in-interest or any of them as adjudged by the Collector by the amount payable in cash shall be calculated afresh in accordance with Rule 29.]

[Substituted by G.S.R. 44, dated 1.4.1974.]

(c)

[In case there is a dispute as to succession with respect to the interest of the deceased Compensation-holder and in every case where the total quantum of compensation exceeds five thousand rupees, the parties claiming to be the successors-in-interest of the deceased Compensation-holder shall be asked to produce a certificate of succession as provided in the Indian Succession Act, 1925 (Act XXXIX of 1925). Thereafter the Bonds shall be revalidated and the amount payable in cash shall be calculated afresh in accordance with the certificate of succession and the procedure laid down in clauses (a) and (b) shall be followed.]

[Substituted by G.S.R. 44, dated 1.4.1974.]

(d)

[Even if the total quantum of compensation does not exceed five thousand rupees but the parties file a certificate of succession under the Indian Succession Act the procedure prescribed in clause (b) shall be followed.

[Inserted by Notification No. 8226-LR, dated 28.10.1967.]

(e)

If the question of succession is not decided within a period of three years from the death of the compensation-holder, the Collector shall return the bonds to the Public Debt Office as prescribed in sub-rule (7).]

33A.

[Procedure where claim for undelivered Bonds is made after three years from the date fixed for delivery.

[Inserted by Notification No. 8226-L.R., dated 28.10.1967.]

(1)

If after the return of the Bonds to the Public Debt Office, Patna, under sub-rule (7) or clause (e) of sub-rule (15) of Rule 33, a claim in respect of such Bonds is made by the compensation-holder or his successor-in-interest, the Collector shall verify the claim and also satisfy himself about the identity of the claimant. In the case of a claim by the successor-in-interest of the compensation-holder, the procedure for verifying the claim shall be the same as provided under clauses (b) to (d) of sub-rule 15 of Rule 33.

(2)

In case the claimant is the compensation-holder in whose favour the undelivered Bonds were issued, the Collector shall send a requisition for the Bonds to the Public Debt Office, Patna, which shall be prepared in Form "N (11 A)" in triplicate, showing inter alia; the full particulars of the Bonds (the total amount of the Bonds in words to be stated by the Collector in his own handwriting), the number and the date of the acknowledgement of the Bonds received from the Public Debt Office, Patna as recorded in column No. 17 of register in Form "N(O)", and the name full address of the Treasury to which Bonds are to be sent. The Collector shall sign and seal each copy of the requisition after satisfying himself that the entries therein have been made correctly. Thereafter, he shall send one copy of the requisition to the Public Debt office, Patna for compliance, one copy to the Treasury Officer (to whom the Bonds are to be sent by the Public Debt Office) for his information and retain the third copy in his office for record. He shall also record a suitable note in the remarks column of the register in Form "N(10)" against the relative entries.

(3)

If the claim has been lodged by the successor-in-interest of the compensation-holder and the claim has been verified in the manner stated above, the Collector shall advise the full particulars of the undelivered Bonds to the Public Debt Office in Form "N(11A)" and request them to cancel the Bonds from their books. The Collector shall also at the same time, send an indent for the issue of fresh Bonds in the name of the successor-in-interest, the indent being sent as prescribed in Rule 30.

(4)

The Public Debt Office, Patna, shall on receipt of the requisition or advice in Form "N(11 A)" return the Bonds or cancel them, as the case may be. Further on receipt of the indent referred to sub-rule (3) the Public Debt Office shall issue fresh Bonds. The old Bonds or the fresh Bonds, as the case may be, shall be sent to the Treasury Office in accordance with the procedure prescribed in Rule 31.

(5)

The procedure for deposit of Bonds in the Treasury, sending intimation to the Collector, periodical verification of the

Bonds, maintenance of records of the Bonds received etc. shall be the same as prescribed in Rule 32.

(6)

The Collector shall, on receipt of an intimation from the Treasury Officer regarding receipt of the Bonds requisitioned or indented by him inform the compensation-holder or his successor-in-interest as the case may be, to take delivery of the Bonds on a specified date either in person or through his duly authorised agent and shall, on the specified date, deliver the Bonds to the compensation-holder, his successor-in-interest or his duly authorised agent. The manner in which the record of the Bonds is to be kept, the instructions to be observed for delivering the Bonds and the procedure for obtaining acknowledgement for the Bonds shall be the same as stated in sub-rule (2) of Rule 33. The Collector shall also make suitable entries regarding delivery of Bonds in the register in Form N(10) referred to in Rule 33(6).]

34.

[Deduction under Section 4(c) or Section 4(cc) or Section 30A or Section 33(2).

[Substituted by G.S.R., 44 dated 1.4.1974.]

- When any deduction from the amount of compensation is to be made on account of arrears of revenue and cesses or any other dues when so ordered by the Collector under clause (c) of Section 4 or excess rent or cess realised by the intermediary after the date of vesting under clause (cc) of Section 4 or ad-interim payment having been made in excess of 2 ½ per cent under subsection (2) of Section 33 the Collector shall by an order in writing state the amount to be deducted and direct the Compensation Officer to reduce the amount of compensation accordingly in the Compensation Assessment Roll and to indent for Bonds and/or to make payment in cash of only the balance left out of the amount of compensation after such deductions. Before the Bonds are indented for/or payment in cash is made the Compensation Officer shall in each case satisfy himself that the Government dues mentioned in the above paragraph have been adjusted against the amount of compensation and that there is no limited owner or holder of life interest, in whose favour a deposit has to be made with the Collector of the district under sub-section 4 of Section 32 and shall record a certificate to this effect on the Compensation Record. The Compensation Officer after making necessary enquiries, shall also endorse on the Compensation record a certificate to the effect that there is no holder of a temporary lease to whom compensation is payable under sub-section (2) of Section 24, that no compensation is payable to a secured creditor on account of claim determined under Chapter IV of the Act and that no deduction is to be made under sub-section (2) of Section 33 on account of ad interim payment.

(2)

Where on discovery of new interests under Section 30A(2) a fresh Compensation Assessment Roll is prepared, the amount of compensation in the fresh assessment roll shall be reduced by the amount that may have been paid to the intermediary on the basis of the previous assessment roll before the preparation of such fresh assessment roll. The Compensation Officer shall at the same time, submit to the Collector of the district a requisition for fresh Bonds and/or for revised amount of compensation payable in cash on the basis of the fresh assessment roll in place of the Bonds previously issued. The Bonds previously issued shall be withdrawn from the intermediary and sent to the Public Debt Office, Patna, through the Collector for cancellation alongwith the indent for fresh Bonds. The Compensation Officer shall also make payment of the revised amount of Compensation in cash according to the procedure laid down in sub-rule (2) of Rule 33. Necessary note regarding cancellation of the Bonds shall also be made in the Remarks column of the relevant registers. At the same time an intimation regarding cancellation of the Bonds shall be sent to the Treasury Office.

(3)

Any excess payment under the second proviso to Section 30-A shall be recoverable from the intermediary as a public demand.]

34A.

[Procedure for payment of compensation to the legal heirs of a deceased compensation-holder having or entitled to a share, as if there were a partition on the date of vesting under Section 20.

[Inserted by Notification No. 4017 LR, dated 31.5.1962.]

- Where a proprietor or tenure-holder having or entitled to share as if there were partition on the date of vesting under Section 20, dies before the payment of compensation the amount of compensation payable to him will be distributed among his legal heirs according to their respective shares. For this purpose such legal heirs will not be treated as separate intermediaries, but will be treated as persons succeeding to or inheriting the compensation of the deceased compensation-holder and if they are themselves intermediaries entitled to compensation in their own rights their

compensation will not be re-calculated, but whatever amount they get through succession or inheritance will be treated as an amount payable to them over and above their ordinary compensation.]

35.

Payment of annual instalments of the principal and interest on Bonds.

(1)

The Bonds shall be payable in forty equal annual instalments to the person named therein or his duly authorised agent or transferee and shall carry interest at the rate of 2 ½ per centum per annum from the date of issue on that part of the principal which has not become payable. No interest shall be payable on any amount of the principal beyond the date on which its payment fell due, even though the amount is not realised by the holder of the Bonds.

(2)

[(i) Payees receipt - Form N(14) - Register of payment of annual instalments of the principal and interest on Bonds payable at Treasury, Form N(15). - The annual instalment of the principal together with the interest due under Rule 35(1) on a bond shall be payable on presentation of the bond at Treasury/Sub-Treasury in the State of Bihar at which the Bond is enfaced for payment of such instalment and interest. The payee concerned shall give a proper receipt for such payment in Form N(14) and the particulars thereof shall be entered in Register of payment of annual instalments of the principal and interest on Bonds payable at....Treasury in Form I(15)

(ii)

Register of Bihar Zamindari Abolition Compensation Bonds enfaced for payment of annual instalments of principal and interest at the Treasury District Form N (15-A). For the purpose of recording enfacements, the Treasury/Sub-Treasury Officer will also maintain a separate register, viz., Register of Bihar Zamindari Abolition Compensation Bonds enfaced for payment of annual instalments of principal and interest at the.....Treasury....District in Form N(15-A).]

[Before making payment of any instalment and interest to a compensation bond-holder, his duly authorised agent or a transferee, the Treasury/Sub-Treasury Officer shall satisfy himself that the requirements laid down in the Government Securities Manual (Third Edition) as regards payment of interest have been fully complied with.

This register Form N(15-A) should have the appropriate quality of paper and cover to enable it to be preserved for forty years and should be a well-bound register with machine numbered pages. As and when vouchers in Form N (14) are passed by the Treasury Officer for making payment of annual instalments: Entries shall be made by him in the relative annual instalment column under his initials which shall be dated by him.]

[Substituted by Notification No. 339 L.R. dated 14.1.1960.]

(3)

[In order to prevent erroneous payment of instalments on principal and interest on a Bond not enfaced for payment at the particular treasury specified in the bond, special care should be exercised in the maintenance of register Form N (15-A). When a bound is transferred for payment to another treasury, the Treasury Officer will at once note the fact in column 1 of register in From N(15-A) and shall not thereafter pay instalment on such bond.]

[Substituted by Notification No. 339 L.R. dated 14.1.1960.]

36.

Redemption of Bond - Notice of discharge.

(1)

Where the State Government opt to redeem any class or classes of Bonds at any time before the expiry of the period of 40 years from the date of issue of such Bonds they will inform the Public Debt Office, [Patna]

[Substituted by Notification No. 339 L.R., dated 14.1.1960.]

, of such class or classes of Bonds and the amount available for their redemption not later than six months before the date proposed for such redemption. On receipt of such information the Public Debt Office, [Patna]

[Substituted by Notification No. 339 L.R., dated 14.1.1960.]

, will arrange for the drawing of lots and will, on the completion of the draw, send a list of the Bonds drawn and to be redeemed to the Government in the Revenue Department (Land Reforms Section) not later than three months before the proposed date of redemption. The list will show the names of the Treasuries at which the Bonds are enfaced. The Revenue Department (Land Reforms Section) will cause this list to be published in the Official Gazette and will at the same time, send a notice of discharge to the Treasury Officer concerned, the Public Debt Office, [Patna]

[Substituted by Notification No. 339 L.R., dated 14.1.1960.]

and the Collector of the district concerned not later than six weeks before the date of redemption.

(2)

The Collector shall, on receipt of a notice of discharge under sub-rule (1); publish a copy of it in his Notice Board, and shall also send extracts thereof to each Sub-divisional Officer concerned for similar publication in his Notice Board.

(3)

Government Securities Manual. - List of redeemed Bonds. - The procedure laid down in Chapter VIII of the Government Securities Manual (Third Edition) for payment of terminable loans read with Rule 15 of the Public Debt (Compensation Bonds) Rules, 1954 shall apply mutatis mutandis to the payment of the outstanding amount of the Bonds to be redeemed. Such Bonds shall, after redemption, be forwarded by the Treasury Officer to the Public Debt Office, [Patna] [Substituted by Notification No. 399 L.R., dated 14.1.1960.]

together with a list of such Bonds in duplicate, and a copy of such list shall also be sent by him to the Collector of the district, the Accountant General, Bihar and the Government in the Revenue Department (Land Reforms Section) for information.

37.

Procedure when the Bond is lost, stolen etc.

- When any Bond issued under these rules is lost, stolen, destroyed, mutilated or defaced, the procedure relating thereto prescribed in the Public Debt (Compensation Bonds) Rules, 1954 reproduced in Appendix A shall apply. [Similarly, when the venue of payment of a particular treasury is proposed to be changed, the general rules of the Government Securities Manual (Third Edition) and Public Debt (Compensation Bonds) Rules, 1954 shall apply.]

[Added by Notification No. 399 L.R., dated 14.1.1960.]

38.

Amount of compensation payable to a limited owner to be deposited with the Collector.

(1)

The amount of compensation payable to a limited owner or the holder of a life-interest shall be kept in deposit with the Collector of the district for the period prescribed in sub-section (4) of Section 32, and the interest accruing on such amount shall be paid to the limited owner or the holder of the life-interest concerned at the direction of the Collector during such period.

(2)

Form N (18) - Form N (19). - The Compensation Officer shall keep the amount of compensation payable to a limited owner or the holder of a life-interest in cash and/or bonds under Rule 27 in deposit with the Collector of the district, the amount of compensation payable in cash being kept in Revenue deposit. The Compensation Officer will forward the Bonds, together with the copies of the challans showing such deposits, to the Collector of the district with a letter in Form N (18). On receipt of the Bonds and challans by the Collector, they will be entered in his office in "Register of Bonds and cash payable to limited owners or holder of life interest" in Form N (19). The Bonds and challans will then be kept in the double lock of the Treasury, where the same Register N(19) shall also be maintained. This Register will be kept along with the Bonds and challans in the double lock. There should be an annual verification of the Bonds and challans by a Gazetted Officer to be nominated by the Collector for the purpose.

(3)

Form N (20). - The Collector of the district will draw from the Treasury the Bonds for payment of interest, or the Bonds and or challans for payment of instalments, etc. when required under sub-rule (4), on a Requisition for Bonds and/or challans in Form N (20) and shall [along with application in Form N (20-A), on which the Treasury Officer will endorse an acknowledgement of receipt]

[Inserted by Notification No. 339 L.R., dated 14.1.1960.]

redeposit the same in the Treasury for safe custody after such payment. Payment of interest and instalments, if any, on such Bonds will be made in the manner laid down in Rule 35.

(4)

Where an application is made by a limited owner or the holder of a life-interest for payment of a part of the amount of compensation to defray any legal expenses under the proviso to sub-section (4) of Section 32, such payment shall not exceed the total amount of annual instalments due on the Bonds on the date of the order together with the amount of compensation in cash, if any, deposited with the Collector on behalf of such owner or holder.

39.

[Manner of calculating approximate amount of compensation for the purpose of payment of 50 per cent of compensation under Section 32-A.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- (i) For the purpose of making payment of an amount not exceeding fifty per cent of the approximate amount of compensation to any outgoing intermediary under Section 32-A, the approximate amount of compensation payable to him shall, so far as maybe, be calculated in the manner provided in Rules 25B to 25-E]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

:

[Provided that where an outgoing intermediary and/or his heir (s) has/have agreed to forego compensation under Rule 7-P (1) in respect of any Hat/Bazar/Mela for which he/they is/are registered under Rule 7-0, the amount of compensation so foregone by him/them on account of settlement of such Hat/Bazar/Mela having been made with him/them shall be adjusted by deduction from the amount of compensation or the approximate amount of compensation before making payment to him/them under Section 32 or Section 32-A as the case may be]

[Substituted by Notification No. 4017 L.R., dated 25.7.1962.]

:

Provided further that any ad interim payment made to the outgoing intermediary in excess of 2 ½ per centum per annum of the approximate amount of compensation payable under Section 33(2) shall be deducted before calculating the approximate amount.

(ii)

When delay occurs in the receipt of the reports from other districts in respect of the interests of an outgoing intermediary lying in those districts, the Compensation Officer of the area in which such intermediary resides or, if he is a person residing outside the State, the Compensation Officer of the area in which the major portion of his interest lies shall calculate the approximate amount of compensation payable to such intermediary on the basis of the materials available in respect of the interests lying in that area, subject to adjustments being made later on.

40.

[Register of adjustments in Form R - Tauzi-wise index of application for compensation in Form S.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

(1)

For the purpose of ensuring adjustment of dues referred to in [Section 24(2), Section 24(5)] and Rule 39, each Compensation Officer shall prepare and maintain a register of adjustments in Form R showing, intermediary wise particulars of the intermediary's interests as well as the various dues to be adjusted. This register should be kept up-to date by ensuring that all dues which are to be recovered in the register.

The Compensation Officer shall make such enquires as may be necessary for ascertaining the dues to be adjusted before payment is actually made.

(2)

The Compensation Officer incharge of the register (Form R) shall also maintain a Tauzi wise index of applications for compensation in Form S, which shall be used by him as a cross-check against any double payment when any Sanctioning Authority sends any record to him for report regarding any particular claim to the payment of compensation.]

41.

[Filing and verification of affidavit before payment of compensation under Section 32 or Section 32-A.

[Substituted by Notification No. 4017-LR, dated 31.5.1962.]

- Before making payment under Section 32 or 32A. the Compensation Officer shall obtain from the compensation holder(s) an affidavit in Form U(1)/U(2) as may be applicable, to show that he/they has/have not receive compensation from any other Compensation Officer, as laid down in Section 32-B, and that he/they is/are the sole claimant(s) in respect of the intermediary interest or that there are other co-sharers.]

42.

[Manner of payment of fifty per centum of approximate amount of compensation under Section 32-A.

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

- After the approximate amount of compensation has been calculated, adjusted and verified according to Rules 39 to 41, fifty per centum of the verified balance shall be paid to the outgoing intermediary in the manner prescribed in the proviso to Rule 27.]

43.

[Manner of payment of perpetual annuity assessed under Section 24 (3).

[Inserted by Notification No. 11336 L.R., dated 9.11.1963.]

(1)

After the Compensation Officer has assessed the annuity he will send the record of the case to the Collector for approval of the amount payable. The Collector will then prepare an annuity payment order (in triplicate) which will be on similar lines to a Pension Payment Order and numbered consecutively. One copy will be sent to Treasury Officer, one to the Accountant-General and the third copy will be made over to the Trustee/Mutawali/Shebait after obtaining a receipt from him.

The Collector will enter particulars of the Annuity Order in a Register in Form O. The Treasury Officer will enter particulars of the Annuity Order in Form V (1).

(2)

The payment in respect of the annuity of any particular year will fall due on the first of April of the next Financial Year and will be paid by the Treasury Officer to the Trustee/Mutawali/Shebait or his duly authorised agent on presentation of a bill in Form V(2). The Treasury Officer will identify the payee before payment and make the necessary entries after payment in Form V(1), indicating in the appropriate column the voucher and the date of payment. The transactions will be incorporated in the monthly account of the treasury in the usual manner.

(3)

As soon as information is received by the Collector of any change in the office of the Trustee/Mutawali/Shebait which may be occasioned by the death of such Trustee/Mutawali/Shebait or otherwise he will immediately communicate to the Treasury Officer the particulars of such Annuity Order and instruct him to stop further payment of annuity on such Annuity Order. A copy of the Collector's order will also be sent to the Accountant-General, Bihar. Thereafter he will start miscellaneous proceedings and in due course issue a new Annuity payment Order in triplicate as in sub-rule (1) in the name of the new Trustee/Mutawali/Shebait indicating the period from which annuity is to be paid to the new Trustee/Mutawali Shebait and cancelling the previous Annuity Payment Orders. Fresh entries will be made in the register in Form V, giving cross reference to the previous entry in the register. The Treasury Officer will also enter the Annuity Payment Order as a new item in the register in Form V (1) giving cross reference to the previous entry in the register. The Treasury Officer will withdraw the old Annuity Payment Order at the time of making the first payment on the new Annuity Payment Order and return the old Annuity Payment Order to the Accountant-General, Bihar.]

The Schedule

[Form A]

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

(See Rule 4)

Form of Collector's written order under Section 4(g) of the Act

To,

Shri/Shrimati

Whereas by reason of the vesting in the State of the estate/tenure bearing Tauzi/Khewat No. in the district of under the provisions of the Bihar Land Reforms Act, 1950, I Collector appointed by the Government of Bihar under the said Act, am of opinion that the State is entitled to the direct possession of the property specified below. I do hereby order you being in possession of such property to deliver possession of the said property to the undersigned by the day of 19 or show cause, if any, against this order in my court within fourteen days of the service of this order.

Particulars of the property in respect of which the notice is given:

(1)

Estate/Tenure.....

(2)

Tauzi No./Khewat No

(3)

Particulars of land and buildings in respect of which notice is given.....

Given under my hand & seal on this day 19

Collector.

[Form B]

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

(See Rule 4)

Form of Collector's general notice under Section 4(h) of the Act To Whomsoever it may Concern

Whereas it appears to me that the lands (Specify particulars here) situated in Tauzi No. of tenure bearing Khewat No. (if any) in the district of or an interest (specify the kind of extent of interest) in the building (specify place and location) used primarily as the Office/Kutchery for the collection of rent of the estate or tenure have been transferred by the outgoing intermediary by settlement of lease or otherwise with/to Shri/Shrimati (specify name and address)

Therefore, it is notified for general information that any person interested or concerned, namely, transferor, transferee or any person in possession of the said property may, within 14 days of the service of the notice, produce documents before the undersigned to decide (i) whether the aforesaid transfer took place before or after the 1st January, 1946; and (ii) whether the aforesaid transfer was made with the object of defeating any provision of the Bihar Land Reforms Act, 1950 or causing loss to the State or obtaining higher compensation thereunder.

Given under my hand and the seal of the Court this 19

Collector

[Form B(1)]

[Substituted by Notification No. 1644 L.R., dated 24.2.1960.]

(See Rule 4)

Form of Collector's notice under Section 4(h) on Transferor, Settler and Lessor

To,

- (1)
- (2)
- (3)
- (4)

Whereas it appears to me that you have transferred by settlement or lease or otherwise the land (specify particulars here) situated in Tauzi No. or Tenure bearing Khewat No. (if any) in the district of or have transferred in interest (specify the kind or extent of interest) in the building (specify placed location) used primarily by you as your office or Kutchery for the collection of rent of your estate or tenure with/to Shri/Shrimati (specify name and address) and I am satisfied that such transfer/settlement/lease was made after the first day of January, 1946 with the object of defeating any provisions of the Act or causing loss to the State or obtaining higher compensation thereunder, you along with your transferee/settlee/lessee as aforesaid are hereby directed to appear before me personally or through an authorised agent to show cause within 14 days of the service of the notice why the aforesaid transfer/settlement/lease should not be set aside, and why your transferee/settlee/lessee, as aforesaid, should not be dispossessed and why the property, as aforesaid, should not be taken possession of under Section 4 (h) of the Act.

Given under my hand and seal on this day 19

Collector

[Form B(2)]

[Substituted by Notification No. 1644 L.R., dated 24.2.1960.]

(See Rule 4)

Form of Collector's notice under Section 4(h) on Transferee, Settlee and Lessee

To,

- (1)
- (2)
- (3)
- (4)

Whereas it appears to me that your are: (i) the transferee by settlement, lease or otherwise of the lands (specify particulars here) situated in Tauzi No. or tenure bearing Khewat No. (if any) in the district of or (ii) the transferee of an interest (specify the kind or extent of interest) in the building (specify place and location) used primarily by the landlord (give name and address) as his office or Kutchery for the

collection of the rent of his estate or tenure (give Tauzi No. or Khewat No.) and I am satisfied that such transfer/settlement/lease was made after the first day of January, 1946, with the object of defeating any provisions of the Act or causing loss to the State or obtaining higher compensation thereunder, you are hereby directed to appear before me personally or through an authorised agent to show cause within 14 days of the service of the notice why the aforesaid transfer/settlement/lease should not be set aside and why the property, as aforesaid, should not be taken possession of under Section 4(h) of the Act.

Given under my hand and seal of the Court this day 19

Collector

[Form B(3)]

[Added by Notification No. 1644, L.R., dated 24.2.1960.]

(See Rule 4)

Form of Collector's general notice under Section 4(hh) of the Act To Whomsoever It May Concern

Whereas it appears to me that a reduction/remission, partial or entire of rent in respect of an agricultural holdings/agricultural holding nos. in Village Thana Thana No. comprised in the estate bearing Tauzi No. Tenure bearing Khewat No. was made by the outgoing intermediary for a period of in perpetuity.

Therefore, it is notified for general information that any person interested or concerned may, within 14 days of the service of the notice, produce documents before the undersigned to decide (i) whether the aforesaid reduction/remission was made before or after the 1st January, 1946 and (ii) whether such reduction/remission was made with the object of defeating the purpose of the Bihar Land Reforms Act, 1950 or causing loss to the State.

Given under my hand and seal of the Court this day 19.....

Collector.

[Form B(4)]

[Added by Notification No. 1644, L.R., dated 24.2.1960.]

(See Rule 4)

Form of Collector's notice under Section 4(hh) of the Act

To,

(1)

(2)

(3)

(4)

Whereas it appears to me that a reduction/remission, partial or entire, of rent in respect of all agricultural holdings/agricultural holding Nos. in village Thana Thana No. comprised in the estate bearing Tauzi No. Tenure bearing Khewat No. was made by the outgoing intermediary for a period of in perpetuity and that such reduction/remission was made after the 1st January, 1946 with the object of defeating the purpose of the Bihar Land Reforms Act, 1950 or causing loss to the State, you are hereby directed to appear before me personally or through an authorised agent to show cause within 14 day of the service of this notice why the aforesaid reduction/ remission should not be cancelled and the rent of such holding which was payable in respect of the said holding immediately before the 1st January, 1946 be restored under Section 4(hh) of the Act.

Given under my hand and seal of the Court this day 19

Collector

Form C

(See Rule 4)

Form of Collector's notice under Section 4(i)

To,

Shri/ShrimatiProprietor/Tenure-holder(Specify particulars of estate or tenure or part thereof)

Whereas your estate/tenure or your interest therein has vested in the State under this Bihar Land Reforms Act, 1950, and whereas you have not complied with the requisition of the Collector to produce the documents, paper and registers specified below you are hereby directed to produce within 48 hours of the service of the notice before Mr authorised by me for the purpose, the documents specified below which are in my opinion necessary for the management of the aforesaid estate or tenure:

(1)

Jamabandi of your interest in estate or tenure (of cash and produce rent).

(2)

Wasul Baki Book.

(3)

Siaha Book.

(4)

Khatian or Khewat of the estate/tenure, if any

(5)

[XX]

[Repealed by Notification No. 1644 LR, dated 24.2.1960.]

(6)

Register of Accounts of Bhawli or Batai lands.

(7)

Register of lands in your Khas possession together with the connected documents or papers in support of it.

(8)

Any other document or paper relating to the management of the estate or tenure.

Given under my hand and seal of the Court this day 19

Collector

Note. - Notice under Section 4(1) to be served when requisition under Section 40 has not been complied with within the time fixed in the said requisition.

Any of the items (1) to (8) not required should be cancelled.

Form D

Notice Under Rule 15

To,

Name of Proprietor/Tenure holder with father's name and residence.

Take notice that I appointed as Compensation Officer by the State Government under Section 19 of the Bihar Land Reforms Act, 1950, shall proceed to determine the compensation payable to proprietors and tenure-holders, under Sections 19,20,21,22,23 and 24 of the Bihar Land Reforms Act, 1950 and you are hereby called upon to submit a return, giving the following particulars and information within a period of 30 days from the date of service of this notice.

1. Name of village with thana number and district.

2. (a) Tauzi No./Nos. with separate account, if any.

(b)

Name of Mahal.

3. Nature and extent of interest in each Tauzi or tenure.

4. Total Land Revenue payable or total rent payable to the superior landlord with name of the superior landlord.

5. Total amount of cess payable.

6. Area under Khas cultivation, total annual income and rent if already fixed by the Collector under Section 6.

7. Area of Gairmazrua Khas or Gairmazrua Malik or Parti land in possession of the proprietor and the rent, if already, fixed for the area by the Collector.

8. Annual rent determined for building or portion of building used permanently as office for the collection of rent.

9. Gross income of the previous agricultural year from fisheries, trees, Jalkars, Ferries, Hats, Bazars, [Melas]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

, [and sairati]

[Repealed by Notification No. 1644 LR, dated 24.2.1960.]

interest.

10. Total annual rents payable by immediately subordinate tenant in case such immediately subordinate tenant is a tenure-holder of a permanent or resumable tenure and in all other cases, by the raiyats, together with the area held by such immediately subordinate tenant or raiyat, as the case may be with survey number of plots.

11. Total cess payable by such immediately subordinate tenant or raiyat, as the case may be.

12. Arrear rent and cess legally recoverable from such immediately subordinate tenant or raiyat, as the case may be.

13. The amount payable as agricultural income-tax for the previous agricultural year by the proprietor or tenure-holder, as the case may be.

14. The amount payable as income-tax in respect of any income derived from such estate or tenure for the previous agricultural year by the proprietor or tenure-holder, as the case may be.

15. The amount paid as Choukidari-tax or Municipal tax in respect of any building used as Cutchery for the management of the estate or tenure.

16. Any other tax or legal imposition payable in respect of the estate or tenure not expressly mentioned in clauses (a) to (e) of Section 23 (1) or any services or obligations of any other form to be rendered or discharged as a condition precedent to the enjoyment of such estate or tenure [Section 23(1) (f).]

Given under my hand and seal of the court this day of 19.....

Compensation Officer.

Note. - A separate return should be furnished for each village in respect of columns 1 to 12 and 15 and 16. Where the interests of a person are in several villages or Tauzi or tenures a consolidated return for all his interests should also be furnished in respect of the particulars required by columns 4 to 16.

Form E

[Vide Rule 15 (i)]

Form of calculation of Net Annual Income

District

Note. - If the interest of proprietor/Tenure-holder lies within the jurisdiction of more than one Compensation Officer, each Compensation Officer will fill only columns 1 to 17 of this Form. The remaining columns will be filled up by the Compensation Officer of the area in which the major portion of the interests of the proprietor/tenure-holder lies.

(To be filled up for each| ProprietorTenure-holder| separately)

(In the case of joint Hindu family one form should be used.)

(Name of| ProprietorTenure-holder| with father's name and residence.....)

Serial No.

TauziNo. andKhewatNo. and other

particulars of estate or tenure

Share of the Proprietor/ Tenure-holder in theTauzior Tenure

Amount of Proprietor's/ Tenure holder's share of
rent in eachTauzior Tenure payable by the immediately
subordinate tenants in case such immediately sub-ordinate tenant
is a tenure-holder of a permanent or resumable tenure and in all
other cases by the Raiyats. [Section 22 (2)(a) and (b)]

Amount of cess payable for the Proprietor's/

Tenure-holder's share in theTauzior Tenure

1

2

3

4

5

Amount of Proprietor's/ Tenure-holder's share in
rents fixed under section 5(1) and Section 6 and 7 in respect of
theTauzior Tenure [Section 22 (2)(b)(i)]

Rent determined in respect ofGairmazrua Khas,

Gairmazrua MalikorPartilands in theTauzior

Tenure [Section 22(2)(b)(ii)]

Amount of Proprietor's/ Tenure-holder's share of

rent of lands purchased by a proprietor or tenure-holder in

execution of decrees for arrears of rent (such lands not being inKhaspossession of proprietor or tenure holder or settled
with anyraiayat). [Section 22(2)(b)(iii)]

Amount of Proprietor's/ Tenure holder's share of

rent determined for buildings used as Office orCutcheryfor the Collection of rents [Section 22(2)(b)(iv)]

Amount of rent determined under section

22(9)(b)(v)

6

7

8

9

10

Amount of Proprietor's/ Tenure-holder's share of
the gross income of the previous agricultural year from fisheries
trees,Jalkars, etc. 1[X X] [Section 22(2)(b)(ii)]

Amount of Proprietor's/ Tenure holder's share of
income from forest as determined under section 22(2)(b)(vi)

Amount of Proprietor's/ Tenure-holders share of
gross annual income of previous agricultural year from any other
sources not included in columns 4 to 11 [Section 22(2)(b)(viii)].

Total gross assests of Proprietor/ Tenure-holder
for all his estates and tenures

Amount of Land Revenue or rent payable by
Proprietor/ Tenure-holder in respect of his share inTauzi/
tenure [Section 23(1)(a)]

11

12

13

14

15

Amount of cess payable by
proprietor/tenure-holder in respect of his share inTauzi/
Tenure [Section 23(1)(a)]

Amount of proprietor's/Tenure-holder' share of
Chaukidari tax or Municipal-tax payable for buildings used
primarily as office orCutchery[Section 23(2)(d)]

Amount of proprietor's/ Tenure-holder's share of
any other tax legal or imposition commuted value of any services
or obligation the rendering or discharge or which is a condition
precedent to enjoyment of the estate or tenure [Section 23(1)(g)]

Amount of Agricultural Income-tax in respect of
his total agricultural income derived by the proprietor/
tenure-holder in the previous agricultural year. [Section 23(1)]

Amount of income-tax payable by the proprietor/
tenure-holder for the previous agricultural year. (If the
proprietor/ tenure-holder for the previous agricultural year. (If
the proprietor/ tenure-holder has different sources of income
assessable to income-tax the amount of tax payable by him on the
income from the estate-tenure other than income form royalties on
mines should be determined in accordance with the rate of
assessment which would have been applicable if the proprietor/
tenure-holder had no income other than the income derived form
such estate or tenure). [Section 23(1)(c)]

16

17

18

19

20

Amount of cost of works management calculated on the total gross, asset as entered in column 14. [Section 23(1)(e)]

Amount of cost of works of benefit calculated on the total gross asset as entered in column 14 [Section 23(1)(f)]

Net income of Proprietor/ Tenure-holder

Remarks

(If the Proprietor/ Tenure-holder owns any estate/ tenure which lines within the jurisdiction of any other Compensation Officer, this should be noted.

21

22

23

24

25

Form F

(Vide Rule under Section 25 of the Bihar Land Reforms Act, 1950)

Compensation Assessment-roll in respect of Mines and Minerals

District.....

Name of| Proprietor|Tenure-holder| with father's name and residence

Note.- If the interest of the| Proprietor|Tenure-holder| lies within the jurisdiction of more than one Compensation Officer each Compensation Officer will fill up columns 1 to 3(a) and column 5 to 6(a).

The remaining columns will be filled up by Compensation Officer of the area in which the major portion of such Proprietors/Tenure-holder's interest lies :-

Serial No.

Name, description and location of the mines or minerals

Annual gross income from royalty during the last 12 agricultural years or any shorter period [Section 24(2)]

Average amount of gross annual income from royalty

Cost of collection calculated according to rates prescribed in rule under Section 25(2)

Net annual average income from royalty Annual gross income from the working of the mine worked directly by the proprietor or tenure-holder during the previous 92 agricultural years or/ shorter period-Section 25(2)

Year

Amount

Year

Amount

1

2

3

3a

4

5

6

Average annual gross income from directly worked mines.

Net annual income from royalty on mines worked directly. i.e., 5 per cent of the amount in column 6(e) [Section 25(3)]

Total of column 5 and 7

Average annual[income tax and cess payable]

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

on the amount of income in column 8

{|

(If the| ProprietorTenure-holder

has different sources of income assessable to

income tax and[cess]

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

the proportionate amount payable by him on

the income from royalty on mines should be calculated and entered

in this column) [Section 25(2)]

| Net total annual income from royalty column 1

minus column 9)

| Amount of compensation payable[under Section

25.

(4)

]

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

| Remarks

|-

| [Income-tax

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

| Cess]

|-

| 6a

| 7

| 8

| 9-A

| 9-B

| 10

| 11

| 12

|}

Date

Compensation

Officer.

Form G

Form of Compensation Assessment-Roll

[This Form is to be filled up for each compensation-holder. In the case of a joint Hindu family a separate Form has to be prepared for each member as if there were a partition at the date of vesting.) [Section 24 Rule 15(2).]

Serial No.

Name of compensation-holder with father's name and address

Total net annual income (as entered in Form E)

Deduction on account of monthly allowance in lieu of maintenance which is a charge on estate governed by law of primogeniture [Section 24(6)]

Net annual income after deducting the amount in column 4

1
2
3
4
5

Amount of compensation payable (calculated on total net income in column 5) (Section 24)

[Amount deducted on account of arrears of revenue and cesses and arrears of rent including royalties and all cesses together with the interest due thereon and all other amounts recoverable by the State Government from the intermediary [Section 4(b) 4 (c)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

[Amount deducted with consent of the intermediary on account of excess collections of rent and cess by him for any period after the date of vesting [Section 4(cc)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

Compensation payable to the holder of a temporary lease. [Section 24(2) vide Form H]

Amount payable to creditors as determined under Chapter IV where interest of proprietor or tenure-holder is subject to a mortgage or charge. [Section 24(5)]

6
7
8
9
10

[Deduction made on account of ad interim payment in excess of 2 per cent. [Section 33(2)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

[Amount previously paid on account, of 20 per cent of the compensation, (Section 32)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

[Amount of compensation payable. (Column 6 minus column 7+8+9+10+11, A-B)]

[Inserted by Notification No. 1644 L.R., dated 24.2.1960.]

Compensation for mines or minerals determined under Section 25

Total compensation payable (add figures in columns 12 and 13)

Remarks

11-A
11-B
12
13
14

15

Date

Compensation

Officer.

Form H

District Sub-Division Form of assessment of compensation for the holder of a temporary lease of estate or tenure under| Proprietor|Tenure-holder| with father's name and residence.

[Section 24(2), vide Rule 17.]

Serial No.

Name and father's name of lessee and place of residence

Particulars of estate or tenure or share thereof under temporary lease

Date on which the lease come into effect

Particulars of document, if any by (which lease was granted)

The period of the lease

1

2

3

4

5

6

Amount

Advanced

Period of which the lessee has been in occupation

Amount of advance to be refunded to the lessee

Fifty per cent of the total amount of arrear rent and cess due to the lessee

Compensation payable to lessee (Total of column 10 and 11) (Section 24)

Remarks

(a)Adjustable on the expiry of the term

(b)Refundable after the expiry of the term

Amount

7

8

9

10

11

12

13

[Form I]

[Inserted by Notification No. 5039 L.R., dated 19.11.1953.]

[See Rule 25A(g)(ii)]

District-wise list of persons entitled to receive ad interim payments under Section 33(1) of the Bihar Land Reforms Act, 1950

District.....

Serial Number

Ad interim payment case number

Name of outgoing proprietor/ tenure holder

entitled to receive ad interim payment with father's name
 Place of residence with postal address
 Name of sub-division
 Number and date of notification under Section
 3(1) of the Land Reforms act, 1950 and date of publication in the
 Bihar Gazette

Approximate amount of estimated compensation

1
2
3
4
5
6
7

Exact amount of ad interim payment due
 Remarks (e.g., ad interim payment refused,
 suspended or stopped with date of order and initials of the
 Collector

For use in Audit Office

For the first half-year ending 30th September
 calculated at-

For the Second half-year ending 31st March
 calculated at-

Number and date of
 Initials of

2-½ per cent.

3 per cent.

2-½ per cent.

3 per cent.

Treasury voucher

Superintendent, where necessary

8
9
10
11
12
13
14

Note. - The amounts noted in columns 8, 9, 10 and 11 should be calculated on the amount specified in column 7 and with reference to the date given in column 6 thus where the payment is for a broken period or less than 6 months only the proportionate amount actually due for the broken period of the half-year and not the full amount for the half-year should be entered.

Form J

[See Rule 15-A (g)(iv)]

Register for ad interim Payment under Section 33 of the Bihar Land Reforms Act, 1950.

District Name of Proprietor/Tenure-holder with father's name and residence

Serial Number

Ad interim payment case number with year

Date of vesting with number and date of
 notification under Section 3(1)

Approximate amount of compensation estimated

Number and date of order sanctioned and interim
payment with the name of the Collector passing the order

Period for which due

Ad interim payments to be made under Section

33(1) calculated

From-

To-

22 p.c.

3 p.c.

1

2

3

4

5

6

7

8

9

Amount paid

Actual date of payment

Date from which ad interim payment ceased

Deduction to be made from final compensation

determined under Section 52 on account of ad interim payment in excess of 2 percent per annum of such final
compensation

Reference to the Compensation Assessment Roll in

which amount shown in Column 13 recovered

Remarks (e.g. ad interim Payment refused,
suspended or stopped with date of the order giving brief
reasons). initials of the Collector or the Gazetted Officer
incharge

10

11

12

13

14

15

Form J(1)

[See Rule 25-A (g)(iv)]

Register of ad Interim Payment Orders under Section 33 of the Bihar Land Reforms Act, 1950

Note. - The Register should be verified once a week with Treasury Register of Ad-interim Payment Orders in T.C. Form
No. 97.

District.....

Serial No.

Name of proprietor or tenure-holder to whom
payments sanctioned

Amount sanctioned together with date of the
Collector's order

Number and date of the Payment order

Number and date of the bill made over to the
payee

Receipt of the payee

1
2
3
4
5
6

Signature of the officer in whose presence the
bill is made over to the payee

Signature of the accountant

Treasury voucher number and date of encashment of
the bill

Date of verification

Remarks (Note page number Register for ad interim
payment - Form J in this column for cross reference)

7
8
9
10
11

Form J(2)

[See Rule 25-A (ii)]

Advice List No. dated

(which should be continuous for each financial year)

Advice list of ad interim payment bills passed for payment

District.....

Item number

Name of the payee

Name and year of the case under Section 33 L.R.

Act

Number and date of the bill

Amount of the bill

T.V. number and date

Remarks

1
2
3
4
5
6
7

Rs.p.

No. dated 200-

Forwarded to the Treasury Officer

Collector.

No. dated 200-

Returned lower portion to the Collector after noting T.V. No. and date of payment.

(Office copy for the T.O.)

Dated signature of Treasury Officer.

(Foil)

(Perforation to detach lower portion)

Station

Date

To,

The Collector.....

Item number

Name of the payee

Name and year of the case under Section 33 L.R.

Act

Number and date of the bill

Amount of the bill

T.V. number and date

Remarks

1

2

3

4

5

6

7

Rs. p.

No. dated 200.....

The above foil of advice is returned herewith after filling column 6, See reverse for instructions)

Signature of the Treasury Officer.

Date

Instruction. -

1. The Treasury Officers should not encash any bill for ad interim payment till this advice received from the Collector and compared by him with the bill to see that the payees and amounts mentioned in both documents agree.

2. After payment of the bill Treasury Officer should detach the lower portion of the advice list and send it to the Collector after noting therein the T.V. No. and date in column 6 thereof.

T.C. Form No. 96

(See Rule 446-A of the Bihar Treasury Code, Volume 1)

[Bill for making ad interim payment to proprietors/tenure-holders under Section 33 of the Bihar Land Reforms Act, 1950.]

Bill no. dated Bill for ad interim payments for the half yearly period from (date.....) 200 to date) 200 Heads of Account -

Major head Treasury voucher Minor head No. of District:

Sub-head

List of payments for - 200

Item number

Date of order with the name and designation of office passing the order

Ad interimpayment case number with year

Reference to item number in the -

Name of proprietor or tenure-holder

Amount of ad interim payment in figure (vide details given on the reverse)

Remarks

District-wise list of the half year ending

Advice list bearing number and date

1

2

3

4(a)

4(b)

5

6

7

Received contents

Please pay to

Signature/Thumb Impression of the payee with date.

(whose specimen signature is given below)

One anna revenue Stamp for sums exceeding Rs. 20

Countersigned for Rs. ?.....(in

words)

Signature of the payee.

Date.....

Please pay to ?..... whosesignature

or thumb impression asgiven above has been obtained inmy
presence.

(Date signature of the messenger)

Collector.

Date.....District.....

[The words in "()" are not necessary when bill is endorsed to Bank]

Checked with advice list and noted in the T.C. Form No. 97.

Pay Rs. (in figures as well as in words).

Treasury Officer.

Date

Station:

Details of amounts shown in column 9 above.

Date of vesting of Notification

Amount of approximate compensation

Rate per cent

Half year for which due (the exact period should
be stated when it is not a complete half year)

Amount

Rs. P.

Rs. P.

Note. - The Treasury Officer should check arithmetically the correctness of the amount shown in column 6 with
reference to the details given above.

Appropriation for the current year.....

Rs. P.

Expenditure including this bill.....

Balance of appropriation available.....

Certificate. -

(1)

Certified that the amount claimed in the bill has been verified with the records and found correct.

(2)

Certified that the bill is made over to the actual payee whose signature or thumb impression has been obtained in my
presence and attested by me

Collector.

For use in Audit Office

Admitted.....

Objected.....

Auditor

Superintendent.

T.C. Form No. 97

(See Rule 446-A of the Bihar Treasury Code, Volume I)

Register of Half-Yearly Ad Interim Payment Orders on.....Treasury
District.

Ad interimpayment case number with year

Name of proprietor or tenure-holder

Amount of ad interimpayment

Half yearly ending to which the payment relates

of the actual period where the claim is not for a complete
half-year

Number and date of the bill

Treasury voucher number and date of payment

Remarks

1

2

3

4

5

6

7

Rs. n. p

[Form K]

[Inserted by Notification No. 3564 L.R., dated 24.8.1953.]

Court Fee Stamp

Form of application to be made by the outgoing proprietor or tenure-holder of an estate or tenure which has vested in the State under the Bihar Land Reforms Act, 1950, for determination of fair and equitable rent or ground rent under Sections 5, 6, and 7 of the Act.

[See sub-rules (i) and (ii) of Rule 7-B]

To,

The Collector of District

I, son/wife of village P.O. P.S. District Proprietor/tenure-holder of estates/tenures described in the Annexure A to this application, beg to apply under sub-rule (i) or (ii) of Rule 7-B of the Bihar Land Reforms Rules, 1951, for determination of fair and equitable rent and ground-rent under Sections 5, 6 and 7 of the Bihar Land Reforms Act, 1950, in respect of the lands/buildings or structures described in the enclosed Annexure A.

2. All the lands described in the enclosed Annexure A were on the date of vesting of such estates/tenures in my Khas possession or in the possession of my temporary lessee or mortgagee as stated therein, and all the buildings or structures, together with the lands on which they stand, also described in the said Annexure A, were in my possession at the commencement of the said Act and used for the purpose mentioned in sub-section (1) of Section 7 of the said Act before the first day of January, 1946; and as such, the said land as well as the said buildings or structure should be deemed to be settled by the State with me subject to the payment of such fair and equitable rent or ground-rent as may be determined by the Collector under the provisions of the said Act and the Rules framed thereunder.

3. I, therefore, request that fair and equitable rent and ground rents for all the land/buildings or structures described in Annexure A, may be determined according to law.

Signature of the applicant or his authorised agent.

Date.....200.....

Verification

I, declare that the facts contained in the above application including Annexure A are true to the best of my knowledge, belief and information.

Identified by -

Signature and designation.

Date.....

Signature of the applicant or his authorised agent.

Date.....

Place.....

Annexure 'A' To Form K

List of in respect of which determination of fair and equitable rent and ground-rent under Sections 5, 6 and 7 of the Bihar Land Reforms Act, 1950, is requested.

Name of outgoing Proprietor/Tenure-holder] _

District.....

Sub-Division.....

Serial No.

Name of village with Thana and Thana No.

Name of estate/ tenure

Tauzi/Khewat No.

Khatian No.

Plot No.

Class of lands/ buildings etc.

Area

1

2

3

4

5

6

7

8

Whether, with respect to lands, in possession of the applicant or of his temporary lessee or mortgagee on the date of vesting

Commencement of Bihar Land Reforms Act, 1950 and used, for purposes mentioned in Section 7(1) before 1st January, 1946

If in the possession of a temporary lessee or mortgagee give full details of the temporary lease or mortgage bond e.g. name of the lessee or mortgagee with address, period of lease or mortgage covered, the lease or mortgage bond, amount advanced etc.

Remarks

9

10

11

12

[Form L]

[Substituted by Notification No. 1644 L.R., dated 24.2.1960.]

[See sub-Rule (i) of Rule 7-D.]

For publication at village P.S. Thana Thana number

To Whomsoever it May Concern

[Whereas an application has been made under sub-rule (1)/sub-rule (ii)]

[Retain the preamble which is relevant.]

of Rule 7-B in the Court of district by outgoing proprietor/tenure-holder of the estates/tenures mentioned in the annexed schedule vested in Government for determination of fair and equitable rent/ground-rent under Sections 5, 6 and 7 of the Bihar Land Reforms Act, 1950, read with the Rules framed thereunder in respect of the lands, buildings or structures described in the said schedule.

[Whereas as a result of suo motu action under sub-rule (iv)]

[Retain the preamble which is relevant.]

of Rule 7-B it appears to me that determination of fair and equitable rent/ground-rent has to be made under Sections 5, 6 and 7 of the Bihar Land Reforms Act, 1950, read with the Rules framed thereunder in respect of the lands, buildings or structures vested in Government, as described in the annexed schedule.

And whereas an enquiry to the matter will be held by me/by on my behalf on at a.m./p.m. in the village P.S.

Therefore, it is notified for general information that any person interested or concerned may attend the enquiry at the aforesaid place on the appointed date and time with such evidence as he may like to produce in support of his claim or objection, if any.

Given under my hand and seal of the Court this day.....

Collector.

Schedule

Name	of	outgoing	proprietor/tenure-holder
.....District			

Serial No.

Name of village with Thana and Thana No.

Name of estate/ tenure

Tauzi KhewatNo.

KhatianNo.

Plot No.

Class of lands/building etc.

Area

1

2

3

4

5

6

7

8

[Form 'M']

[Substituted by Notification No. 1644 LR, dated 24.2.1960.]

Rent-roll showing fair and equitable rent or ground-rent determined under Sections 5, 6 or 7 of the Bihar Land Reforms Act, 1950

[See Rule 7-I]

District.....

Sub-Division.....

Serial No.

Rent Assessment case no. with year.

Name of (1) outgoing proprietor/ tenure-holder
with father's name and full address

Name of village (in which land settled lie) with
thana and thana number

Name of estate withTauziNo.

KhewatNo.

Halka

1

2

3

4

5

6

7

Circle

Class

KhatianNo.

Plot No.

Area

Average rate of rent or ground rent fixed

Fair rent of ground rent fixed

Remarks (Signature of the Collector with date)

8

9

10

11

12

13

14

15

[Form 'N']

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

(Indent for Bihar Zamindari Abolition Compensation Bonds)

[See Rule 30(1)]

District.....

Sub-Division

Indent number of

Memo No.

Dated,

Forwarded, in triplicate, to the Manager, Reserve Bank of India, Public Debt Office, Patna for compliance.
Compensation Officer.

Collector.

Station.....

District.....

Part I ? To be filled up by the Collector

Serial No.

Name of[payee (Compensation holder) with
parentage and residence]

[Substituted by Notification No. 4017 LR, dated 31.5.1962.]

Name of estate with Tauzi No. [(State whether he
is proprietor/ or /tenure holder/ or creditor/ or maintenance
holder etc.)]

[Inserted by Notification No. 4017 LR, dated 31.5.1962.]

Khewat No. in case of tenure

Net amount of compensation payable in Bonds

Number of Bonds of each denomination intended for

Total value of Bonds intended for
Treasury where to be enfaced for payment of
instalment and interest.

50, 100, 200, 500, 1,000, 5,000, 10,000

1
2
3
4
5
6
7
8

Part II ? To be filled up by the Public Debt Office

Serial number of Bonds issued Denomination50,

100, 200, 500, 1,000, 5,000, 10,000

Total value of Bonds issued

Number and date of the forwarding schedule

Remarks

9
10
11
12

Total value of Bonds indented for Rupees....(in words and in the handwriting of the Collector).

Collector

District.....

Date.....

Note below full address for despatch.

(Here give the full address of the Treasury Officer to whom the consignment of Bonds will be transmitted together with specific instruction for despatch).

I, hereby certify that this indent has been prepared in accordance with the Rules and instruction issued for the purpose.

Collector

District.....

Station.....

Date.....

Seal of the Collector

Form N (1)

[Register of Indents for Bihar Zamindari Abolition Compensation Bonds]

[See Rule 39 (5)]

[Substituted by Notification No. 4017 LR., dated 31.5.1960.]

District

Number and date of indent

Name of payee (compensation-holder) with
parentage and residence

Number of bonds of each denomination indented

Total value of bonds indented for

Signature of the Collector/ Compensation Officer

Denomination

Number

1
2
3

4

5

6

Sub-Division.....

Number and date of forwarding schedule from the
Public Debt Office

Serial number of bonds supplied by[Public Debt
Officer, Patna]

[Substituted by Notification No. 339 L.R. dated 14.1.1960.]

Total value of bonds supplied

Signature of the Collector/ Compensation Officer

Remarks

Serial no.

Denomination

7

8

9

10

11

12

[Form N (2)]

[Substituted by Notification No. 339 L.R. dated 14.1.1960.]

[See Rule 31]

[Schedule of Bihar Zamindari Abolition Compensation Bonds forwarded by the Manager, Reserve Bank of India, Public
Debt Office, Patna]

Number and date of indent

For whom the Indent was received

Number of Bonds of each denomination despatched

Total value of Bonds supplied

Remarks

50, 100, 200, 500, 1,000 5,0000, 10,000

1

2

3

4

5

Memo No.

Dated

Forwarded in duplicate to the Treasury Officer of.....Secretary to the Government of Bihar, Finance Department,
Patna for information.

Manager.

Reserve Bank of India

Public Debt Office, Patna

Memo No.

Dated.....

Received the Bonds specified above and returned to the Manager, Reserve Bank of India Public Debt Office, Patna
Treasury Officer.

Station.....

Date.....

Seal of the Treasury Officer.

[Form N (3)]

[Substituted by G.S.R. 44 dated 1.4.1974.]

Notice to the Compensation-Holder Tendering Payment of Compensation.

[See Rule 33 (2)]

In The Court of The Compensation Officer

No., dated the.....

To,

(Name of the compensation-holder with parentage and residence.)

Name of Estate.....

Tauzi No.

KhewatNo.

Village

Thana

Thana No.

Subdivision

District

Whereas the net amount of compensation payable to you in respect of the vested estate/tenure specified above has been determined to be Rs and is payable to you in bonds of the amount of Rs. and/or in cash of the amount of Rs. you are hereby directed to appear personally or through an agent duly authorised to receive the same in my Court/or at on the 19 between the hours 10.30 A.M. and 4.30 P.M.

Take notice that in default of your appearance on the said date, the bonds and/or the cash will be deposited with the Collector of the district and thereafter the same can be received by you only on an application before the Collector of the district within a period of three years from the said date.

Given under my hand and the seal of the Court, this day of 200

Seal of the Court.

Compensation Officer.

[Form N (3-A)]

[Substituted by G.S.R. 44, dated 1.4.1974.]

Notice to the Compensation-Holder Tendering Payment of the Net Amount Payable to him under Section 53A of The Bihar Land Reforms Act, 1950 After Deductions And Matter Connected Therein.

[See Proviso to Rule 33 (2)]

Note. - This notice shall be sent by registered post with acknowledgement due.

In The Court of The Compensation Officer

Compensation Case No date the.....

To,

(Name of the compensation-holder with parentage and residence.)

Name of Estate

Tauzi No.

KhewatNo.

Village

Thana

Thana No.

District

Whereas after making deductions as specified below, the net amount on account of the fifty per cent of the approximate amount of compensation payable to you under Section 32A has been determined to be Rs. and the said amount is payable to you in Bonds of the amount of Rs. and/or in cash of the amount of Rs. you are hereby directed to appear personally or through an agent duly authorised to receive the same in my court/or at on the 200 between the hours 10.30 A.M. to 4.30 P.M.

Take notice that -

(1)

in default of your appearance on the said date the Bonds and/or the Cash will be deposited with the Collector of the district and thereafter the same can be received by you only on and before the Collector of the district within a period of

three years from the said date.

Form N (4)

Cash Payment Order

[See Rule 33 (2)]

Treasury Voucher No. of Head of Account "65. Payment Cash Payment order No. compensation to land-holder Dated etc., on the abolition of Zamindari system Compensation."

District Sub-Division

To,

The Treasury Officer of

Pay to son/daughter/widow of resident of P.S. district the sum of Rs. (Rupees.....) only, being the amounts of compensation payable in cash under the provisions of the Bihar Land Reforms Act, 1950 (Act XXX of 1950) and the Rules made thereunder, vide Compensation Case No.of 200.....

2. The expenditure under this order is debitable to the Head "

3. This Order shall be valid for three months from the date of issue and no payment shall thereafter be made on the Order unless duly revalidated by the Compensation Officer.

Signature of Compensation Officer.

Station.....

Date.....

Received Payment.....

Please pay to.....

Dated signature of the payee's authorised agent

Signature or thumb impression of the payee with date.

Attested

Compensation Officer.

Date.....

[One rupee]

[Vide Finance Act, 1994.]

receipt stamp for sums exceeding Rs. 500

Dated Signature of payee's (Dated signature of payee's authorised agent).

Certificate -

(1)

Certified that the amount noted in this order has been verified with the relevant records and found correct.

(2)

Certified that this order is made over to the actual payee his/her duly authorised agent whose signature/thumb impression has been obtained in my presence and attested by me.

Compensation Officer.

Station.....

Dated.....

Checked with the advice list and noted in Register of Cash payment orders.

Pay Rs (rupees) only.

Station.....

Dated.....

Treasury Officer.

[Form N (5)]

[Substituted by G.S.R. 44, dated 1.4.1974.]

Register of Payment of Compensation in Bonds/Cash

[See Rule-33 (2)]

District.....

Subdivision.....

Serial No.

Name of the Compensation holder with parentage
and residence

Compensation case number with year

Net amount of compensation payable

Serial number of bonds of each denomination
issued to the compensation-holder as per Column 4

Total value of bonds

Amount of cash as per column 5

Date of delivery of bonds and/or payment of cash
to the Compensation holder

In bonds

In cash

Serial No.

Denomination

1

2

3

4

5

6

7

8

9

10

Signature of the Compensation-holder or his duly
authorised agent in token of receipt

Signature of the compensation officer with date

In case of non-delivery number and date of

Schedule forwarding the bonds and/or receipt for the deposit of
cash in "Rev. Deposit" to the Collector

Number and date of acknowledgement by the
Collector

Signature of the Compensation officer

Remarks

11

12

13

14

15

16

Form N (6)

Advice List of Cash Payment Orders issued for Payment
[See Rule 33 (2)]

Advice List No. dated

(This number should be continuous for each financial year)

District..... Sub-Division.....

Name of the payee with full address

Compensation case number

Number and date of the Cash Payment Order

Amount covered by the Cash Payment Order

Treasury voucher number and date

Remarks

- 1
- 2
- 3
- 4
- 5
- 6

Memo no. dated

Forwarded to the Treasury Officer of

Station.....Date.....Memo
no.....

Compensation

Officer.Dated.....

Returned the lower portion to the Compensation Officer.....after noting Treasury Voucher No. and date of payment.

(Office copy for the Treasury Officer)

Treasury Officer.

Date.....

(See below for instructions)

.....(Perforation to detach lower portion).....

Station.....

Date.....

Foil

To,

The Compensation Officer.....Advice List No.....dated.....

(This number should be continuous for each financial year)

District.....Sub-Division.....

Name of the payee with full address

Compensation case number

Number and date of the Cash Payment Order

Amount covered by the Cash Payment Order

Treasury voucher number and date

Remarks

- 1
- 2
- 3
- 4
- 5
- 6

Rs.

Memo No.

Dated.....

The above foil of advice is returned herewith after noting Treasury voucher number and date of payment.

Treasury Officer

Date.....

Instructions. - (1) The Treasury Officer should not encash any cash payment order till this advice list is received from the compensation officer and compared by him with the cash payment order to see that the payee and the amount mentioned in both the documents agree.

(2)

After payment of the cash payment order the Treasury Officer should detach the lower portion of the advice list and send it to the Compensation Officer after noting therein Treasury voucher number and date of payment.

Form N (7)

Register of Cash Payment Orders On Treasury Under The Bihar Land Reforms Act, 1950

[See Rule 33 (2)]

District

Sub-Division.....

Number and date of cash payment order with date
of revalidation if any

Compensation case number with year

Amount covered by the Cash Payment Order

Name and full address of the payee

Treasury voucher number and date of payment

Initials of the Treasury Officer with date

Remarks

1

2

3

4

5

6

7

[Form N (8)]

[Substituted by Notification No. 339 L.R., dated 14.1.1960.]

No.

Requisition for Bonds on

Treasury

[See Rule 33(3)]

To,

The Treasury Officer..... Dated the 200

The undermentioned Bihar Zamindari Abolition Compensation Bonds may kindly be issued to me on the 200
..... for delivery to the Compensation-holder concerned.

Compensation Officer.

Station.....

Date.....

Particulars of Bonds Requisitioned

Name of the Compensation holder

Description of Bonds

Total value of the Bonds requisitioned

Remarks

Serial Number

Denomination

1

2

3

4

5

Issue the Bonds specified in the above requisition.

Treasury Officer.

Date.....

Received the Bonds specified above.

Compensation Officer.

Date.....

[Form No. (9)]

[Substituted by G.S.R. 41 dated 1.4.1974.]

of undelivered Bond and/or receipt for deposit of Cash in "Rev. Deposit" forwarded to Collector for deposit under Rule 33(5) or for being dealt with in accordance with Rule 33(15).

No.

To,

The Collector

Dated the

Sir,

The undermentioned undelivered Bihar Zamindari Abolition Compensation Bonds and/or receipt for deposit of Cash in "Rev. Deposit" are herewith forwarded to you for deposit under Rule 33(5) or for being dealt with in accordance with Rule 33(15) of Bihar Land Reforms Rules, 1951.

Please acknowledge receipt.

Yours faithfully,

Compensation Officer Station.....

Particulars for the undelivered Bonds and/or receipt for deposit of cash in "Rev. Deposit" forwarded to the Collector for deposit under Rule 33(5) or for being dealt with in accordance with Rule 33(15).

Compensation of the case no. with year

Name of the Compensation-holder with parentage
and residence

Sl. No. of Bonds of each denomination

Total value of bonds

Cash payment orders

Remarks

Sl. No.

Denomination

Sl. No.

Amount

1

2

3

4

5

6

7

8

Rs.

Rs.

Rs.

Memo No. dated the

200.....Specified above

Received the

documentCollectorDistrict.....

[Form No. (10)]

[Substituted by G.S.R. 41 dated 1.4.1974.]

Register of Undelivered Bonds and/or receipt of undisbursed cash deposit in "Rev. Deposit" received by the Collector for deposit under Rule 33(5) or for being dealt with in accordance with Rule 33 (15).

[See Rule 33 (5) and Rule 33 (15)]

Serial No.

From, whom received

Date of Receipt

No. and date of Schedule forwarding the Bonds

and/or receipt of cash deposited in Revenue "Deposit."

Compensation case no. with year

Name of the Compensation-holder with parentage
and residence

Sl. of bonds of each denomination received

Sl. No.

Denomination

1

2

3

4

5

6

7

8

Total value of bonds received

Amount of cash as per receipt of "Revenue
Deposit".

Signature of the Collector-with date

Date of delivery of bond and or payment of cash
to the Compensation holder or his duly authorised agent by the
Collector

Signature of the compensation holder or his duly
authorised agent in token of receipt

Signature of the Collector with date

9

10

11

12

13

14

In case bonds are not delivered within three
years, no. and date of the Schedule forwarding the bonds to the
Public Debt Office, Patna

No. and date of acknowledgement from the Public
Debt-Office, Patna

In case of nonpayment of the cash within three
years from the date of the return of the receipt of "Rev.
Deposit" to the compensation officer after cancellation.

Number and date of acknowledgment of receipt for
cash deposit, in "Rev. Deposit" from the compensation
officer.

Signature of the Collector with date

Remarks

15

16

17

18

19

20

[Form N-11]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

of Undelivered Bonds forwarded by the Collector to the [Public Debt Office Patna]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

for deposit [or being dealt with under Rule 33 (15)]

[Inserted by Notification No. 4017 LR, dated 30.5.1962.]

[See Rule 33(7) [and Rule 33 (15)]

[Inserted by Notification No. 4017 LR, dated 30.5.1962.]

No.

From

The Collector of

To,

The Manager

Reserve Bank of India, [Public Debt Office, Patna]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

Dated the.....200.....

Sir,

The undermentioned undelivered Bihar Zamindari Abolition Compensation Bonds are returned herewith for deposit under Rule 33(7) [or for being dealt with under Rule 33(15)]

[Inserted by Notification No. 4017 LR, dated 30.5.1962.]

of the Bihar Land Reforms Rule, 1951. Please acknowledge receipt.

Yours faithfully,

Collector

Particulars of Bonds returned to the [Public Debt Office, Patna]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

Number and date of forwarding Schedule with which the Bonds were supplied by the Public Debt Office.

Name of the proprietor/ tenure holder in whose favour the Bonds were issued

Serial number of Bonds of each denomination returned

Total value of Bonds returned

Brief reasons for return

Serial number

Denomination

1

2

3

4

5

6

Rs.

Rs.

Memo No.

dated.....19

Received the Bonds specified in 2[the schedule above and returned to the Collector of.....

Manager, Reserve Bank of India, [Public Debt Office]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

, Patna.

[Form N (11-A)]

[Inserted by Notification No. 4580 LR, dated 29.6.1967.]

(In triplicate)

Sub-rule (7) of clause (e) or sub-rule 15 of Rule 33; requisition/cancellation undelivered Bond(s) sent to the Public Debt Office, Patna in terms of

[See Rule 33A (2) (3)]

No. dated

From,

The Collector of

To,

The Manager,

Reserve Bank of India,

Public Debt Office, Patna.

Sir,

The undermentioned Bihar Zamindari Abolition Compensation Bond(s) was/were returned to the Public Debt Office; Patna vide this Office Schedule No. dated 200 and was/were acknowledged by the Public Debt Office, Patna, vide their Memo No. dated.....200.

2. The claimants) has/have now requested for delivery of his/her/their Bond(s). The claim has been verified and found to be correct, hence, the aforesaid Bonds may now be sent to.....(here write the name and address of the Treasury Officer to whom the Bonds are to be sent).

3. The claimant (s) is/are the successor(s)-in-interest of the compensation-holder (since deceased) and his/their claim has been recognised. It is, therefore, requested that the aforesaid Bonds may be cancelled in terms of sub-rule 15(b) of Rule 33. A requisition in Form 'N' for issue of fresh Bonds in the name (s) of the successor (s) in interest is enclosed.

Particulars of the Bonds returned to the Public Debt Office

No. Distinguishing nos. of Bonds.

DenominationRs.

AmountRs.

Total amount of Bonds (in words).....(amounts in words to be stated by the Collector himself).

Yours faithfully

Collector.

Seal

"Strike out which is not applicable."

Form N (12)

Monthly Statement of Payment of Compensation in Cash For.

The Month Of. 200....

[See Rule 33(9)]

District.....Subdivision.....Anchal.....

Amount or cash disbursed to the previous month.

Amount of cash disbursed during the month.

Total

Amount of cash drawn but not disbursed during the month.

Remarks

1

2

3

4

5

Compensation officer

Collector

Date.....

Form N (13)

Advice List of Cancellation Receipts For Cash Deposited in, Rev. Deposit" Returned To Compensation Officer.

[See Rule 33(11)]

To,

The Compensation Officer.....

Dated.....

The undermentioned Receipts for cash deposited in "Rev. Deposit" which are lying undelivered with me for more than three years and have therefore been cancelled by me under the Rules, are returned herewith for necessary action.

Please acknowledge receipt.

Station.....Date.....

CollectorDistrict.....

Particulars of receipt for cash deposited in, "Rev. Deposit"

Compensation case no. with year

Name of the compensation holder with parentage

and residence

Cash

Remarks

No. and date of receipt.

Amount

1

2

3

4

5

Memo No.

Date.....

Received the Cancellation Receipts for cash deposited in "Rev. Deposit" specified above.

Station.....

Date.....

Form N(14)

Receipt for Annual Instalment of the Principal with Interest on Bihar Zamindari Abolition Compensation Bond

[See Rule 35(2)]

Received from the Government Treasury at.....the annual instalment of the principal with interest due on the Bihar Zamindari Abolition Compensation Bonds, as noted below :-

No. of Bond

Amount of each Bond

Amount of yearly instalment

Number of yearly instalment(s) due

Total amount due

Date up to which instalment is due

Name of the holder of the Bonds.

Principal

Interest

Principal

Interest

1

2

3

4

5

6

7

8

9

Rs.

Rs.

Rs.

Deduct income tax at-pies Surcharge, Net amount payable, Total-

Rs.

Rs.

Total received (in words.....)

Signature

(State whether holder or holder's attorney or administrator)

Date.....

[For Use In Treasury]

[Substituted by Notification No. 339 LR, dated 14.1.1960.]

Treasury Voucher No. and date

Classification of charges on account of -

Total

[Date of Payment made]

[Added by Notification No. 5521 LR dated 6.7.1966.]

Principal under head" N - Public Debt, etc.

Interest under head[16-Interest on debt and other obligations, etc."]

[Added by Notification No. 5521 LR dated 6.7.1966.]

1

2

3

4

5

Rs.

Rs.

Net amount payable.

Pay Rs. (in figures as well as in words) only as specified above.

Treasury Officer.

Treasury.....

[Form N (15)]

[Substituted by Notification No. 339 L.R., dated 14.1.1960.]

Register of payment of Annual/Instalments of the Principal and Interest on Bihar Zamindari Abolition Compensation Bond

[See Rule 35 (2)]

Date

No. of vouchers

Name of payee

No. of the bond

Amount of bond

Particulars of payment

Amount of net income-tax deduction

Net amount paid

Daily total of net payment

Treasury Officer's signatures

Date up to which paid

No. of years for which paid

Principal
Interest
Total

1
2
3
4
5
6
7
8
9
10
11
12
13
14
Rs.
Rs.
Rs.
Rs.
Rs.
Rs.
Rs.

Note. - From this register will be copied a schedule under each of the head ". - Public Debt/65 Payment, etc." (for the principal) and "22-Interest, etc." (for the interest) and these schedules together with voucher should accompany the monthly list of payments submitted to the Accountant-General.

[Form N (15-A)]

[Inserted by Notification No. 339 L.R., dated 14.1.1960.]

Register of Bihar Zamindari Abolition Compensation Bonds enfaced for payment of annual instalments of Principal and Interest at the.....Treasury.....District

[See Rule 32(5)]

Serial No.

No. and date of advice from the public Debt

Office

No. of bonds

Value of bonds

Amount of instalment of principal

Date up to which instalment was last paid

1
2
3
4
5
6
Rs.
Rs.

Particulars of payment of instalments year ending
date and date of payment of instalment

Treasury Officer's initials

1st instalment

2nd instalment

3rd instalment

4th instalment

7

8

9

10

11

No. and date of advice of cancellation of
enfacement

No. and date of Income-tax Exemption/Abatement

Certificate

Treasury Officer's initials

Remarks

12

13

14

15

Note. - (1) The entries in sub-column 8 should be attested by the dated initials of the Treasury Officer. When instalment vouchers are passed by the Treasury Officer before the due date in terms of paragraph 42 of the Government Securities Manual (3rd edition), the pay order and the entry in column 8 should be dated with the due date and not with the date on which the payment order may actually happen to be passed. In such cases the payment order should not, however be delivered to the party before the due date.

(2)

As the dates of payment of instalments will be different, year ending date and the date of actual payment should be noted against each bond in sub-column of column 8.

Form N (16)

Stock and Issue Register of Bihar Zamindari Abolition Compensation Bonds

[See Rule 32 (3)]

Date

Opening balance

Receipt

Total

Issues

Signature of compensation officer in token of
receipts

Closing balance

No. of bonds

Amount

No. of bonds

Amount

No. of bonds (Clos 2 plus 5)

Amount (cols 2 plus 5)

Number of bonds

Amount

Number of bonds (Cols. 6 minus 8)

Amount (Cols 7 and minus 9)

1

2

3

4

5
6
7
8
9
10
11
12
Rs.
Rs.
Rs.
Rs.
Rs.
[Form N (17)]
[Substituted by Notification No. 339 L.R., dated 14.1.1960.]
Letter to the Treasury Officer, initiating delivery of Bonds to Compensation-holders
[See Rule 33 (2)]
No.
From,
The Compensation Officer.....
To,
The Treasury Officer.....
dated.....the.....200.....
Sir,
The following Bihar Zamindari Abolition Compensation Bonds which are endorsed for payment at your Treasury or at the Sub-Treasury sub-ordinate to your Treasury, have been delivered by me to the Compensation-holders as detailed in the attached list on the dates mentioned therein.
2. An acknowledgement of receipt is requested.
Yours faithfully,
Compensation Officer.
List of Bonds delivered to the compensation-holders
Name of compensation holder
Serial no. of bonds delivered
Total amount of bonds
Treasury at which payable
Amount of annual instalment on account of
principal
Interest
Date of issue
Year
Amount
1
2
3
4
5
6
7
8
Details of Closing Balance
Denomination of bonds

Numbers

Amount

1

2

3

Rs.

Rs. 50

Rs. 100

Rs. 200

Rs. 500

Rs. 1,000

Rs. 5,000

Rs. 10,000

Total closing balance....

Signature of Treasury Officer.

Form N (18)

[Letter from Compensation Officer forwarding Bonds and Challans in respect of compensation payable to limited owners or holder of Life Interest.]

[See Rule 38 (2)]

No.

From

The Compensation Officer.

To,

The Collector, district....

Dated.....,the.....200.....

Sir,

As required under sub-section (4) of Section 32 read with Rule 38, I am to forward for necessary action the following bonds and challans in respect of compensation payable to limited owners or holders of life interest as detailed in the attached list. Specimen signatures/left thumb impressions of each of the limited owners or the holders of life interest are given in column 8 of the list for purposes of identification at the time of payment.

The duplicate copy of the list may be forwarded to the Treasury Officer for record.

An acknowledgement of receipt is requested.

Yours faithfully,

Compensation Officer.

List of Bonds and Challans forwarded for deposit.

Name of limited owner/ holder of life interest

with full address

Serial number of Bonds forwarded for deposit in

his/her behalf

Total amount covered by the Bonds

Date of issue of Bonds

Challans with which cash compensation kept in

revenue deposit in his/her behalf

Specimen signature/ left thumb-impression of the recipient (limited owner or holder of life interest).

Number

Date

Amount

1

2

3

4
5
6
7
8
Rs.
Rs.
Form N (19)
[Register of bonds and Cash payable to limited owners or holders of life interest]
[See Rule 38 (2)]
Name of the limited owner/ holder of life
interest with full address
Serial No. of Bonds kept in deposit in his/ her
behalf
Total amount covered by the Bonds
Date issue of the Bonds
Challans with which cash compensation kept in
revenue deposit
Letter No. and date forwarding the Bonds and
Challans
Initials of the Collector/ Treasury Officer
Remarks
Number
Date
Amount

1
2
3
4
5
6
7
8
9
10

Rs.
Rs.
[Form N (20)]
[Substituted by Notification No. 339 LR, dated 14.1.1960.]
[Requisition for Bonds and/or Challans in respect of compensation payable to limited owners/holders of life interest]
[See Rule 38 (3)]
No.District.....
To,
The Treasury Officer.....
The undermentioned Bihar Zamindari Abolition Bonds and Challans may kindly be issued to me on the.....200.....,
for payment of interest (and instalments) to the limited owners and holders of life interest as detailed below.
Station
Collector
Date
Particulars of Bonds and Challans Requisitioned
Name of limited owner/ holder of life interest

Particulars of Bond

Total value of Bonds requisitioned

Particulars of Challan

Amount

Remarks

Serial number

Denomination

Number

Date

1

2

3

4

5

6

7

8

Rs.

Rs.

Issued the Bonds and Challans specified in the above requisition.

Treasury Officer

Date.....

Received the Bonds and Challans specified above.

Collector.

Date.....

[Form N (20-A)]

[Substituted by Notification No. 339, L.R., dated 14.1.1960.]

[Application for re-deposit of Bonds and/or Challans in respect of compensation payable to limited owners/holders of Life Interest in the Treasury for safe custody]

[See Rule 38 (3)]

No.

Dated.....200.....

To,

The Treasury Officer.....

The undermentioned Bihar Zamindari Abolition Bonds and/or Challans are re-deposited herewith in the Treasury, for safe custody, as detailed below:

Station.....Date?.....

.....Collector

Particulars of Bonds and Challans re-deposited in the Treasury for safe custody.

Name of limited owner/ holder of life interest

Particulars of Bonds

Particulars of Challans

Remarks

Serial No.

Denomination

Number

Date

Amount

1

2
3
4
5
6
7

Rs.

Received the Bonds and Challans specified above.

Treasury Officer

Date.....

Form N (21)

Weekly statement of Bonds issued in payment of compensation under the Bihar Land Reforms Act, 1950 for the week ending.....200....

[See Rule 33 (14)]

District.....

Date of delivery of bonds

Number and denomination of bonds issued

Total number of bonds issued (columns 2 to 8)

Total amount covered by the bonds issued

Remarks

Rs. 10,000

Rs. 5,000

Rs. 1,000

Rs. 500

Rs. 200

Rs. 100

Rs. 50

1

2

3

4

5

6

7

8

9

10

11

Rs.

Note. - There should be separate entry relating to each day's transaction during the week under report and a total of columns 2 to 10 struck for the entire transaction of the week.

[Form N (22)]

[Inserted by Notification No. 10373 L.R., dated 8.10.1963.]

of Bonds and/or Cash Payment Orders forwarded to Collector for correction

[See Rule 33(4-A)]

From

The Compensation Officer,

To,

The Collector,

Dated the.....200.....

Sir,

As required under Rule 33 (4A) of the Bihar Land Reforms Rules, 1951, I am to forward the following Zamindari Abolition Compensation Bonds and/or Cash Payment Orders for correction of mistakes therein.

2. An acknowledgement of receipt is requested.

Yours faithfully.

Compensation Officer.

Particulars of the Bonds and/or Cash Payment Orders forwarded to the Collector for correction.

Compensation case No. with year

Name of Compensation-holder with parentage and
residence in whose favour Bond/ Cash payment order have been
issued

Serial No. of Bond of each denomination

Total value of bonds

Cash Payment order

Correction to be made

Serial No.

Denomination

Serial No.

Amount

Name

Parentage

Any other matter

1

2

3

4

5

6

7

8

9

10

Memo No.dated the.....200.....

Received the document specified above and returned to the Compensation Officer.....

Collector.....

[Form N (23)]

[Inserted by Notification No. 10373 LR, dated 8.10.1963.]

of Bonds forwarded by the Collector to the Public Debt Office, Patna for correction

[See Rule 33 (4-A)]

From

The Collector of.....

To

The Manager,

Reserve Bank of India,

Public Debt Office, Patna.

Dated the.....200.....

Sir,

The undermentioned Bihar Zamindari Abolition Compensation Bonds are returned herewith for making necessary corrections therein under Rule 33 (4-A) of the B.L.R. Rules, 1951.

Yours faithfully

Collector.

Particulars of the Bonds returned to the Public Debt Office, Patna.

No. and date of forwarding Schedule with which
the bonds were supplied by the Public Debt Office

Name of Compensation-holder with parentage and
residence in whose favour bonds were issued

Serial No. of Bonds of each denomination returned

Total value of Bonds returned

Correction to be made.

Any other details

Serial No.

Denomination

Name

Parentage

1

2

3

4

5

6

7

8

Memo No. dated, the 19

Received the Bonds specified above and returned to the Collector of

Manager, Reserve Bank of India, Public Debt Office, Patna.

"A"

Referred To In This Security Bond

Particulars of the Trust property

Tauzi No. with the name of estate

Khewat No. in case of tenure

Nature and extent of interest held under trust

Names of villages with Thana and Thana No. in
which Tauzi or interest held under trust is situated

1

2

3

4

[Form (O)]

[Inserted by Notification No. 1644 LR, dated 24.2.1960.]

Security Bond

[See Rule 25-G (3)]

This Agreement is made on the day of 200 between son of resident of P.S.
..... District on the one part and the State Government of Bihar through the Collector of district on the other
part.

Whereas I/we am/are representing the true and lawful trustee(s) of the trust property specified in the Schedule 'A' hereto
annexed;

And Whereas ad interim payments in respect of the said trust property have been duly sanctioned to me/us as trustee
(s) representative (s) of trustee (s) of the said trust property for the period from to by order dated in ad
interim payment case No. of 200 and the State Government through the said Collector have
consented to make the said ad interim payment upon me/our giving security of Rs. (Rupees) to meet a
claim by a rightful trustee(s) of the said trust property in case there shall be such a claim;

Now these presents witness that in pursuance of the aforesaid agreement I/we hereby oblige myself/ourselves to make

good the claim of the rightful trustee (s) in respect of the said trust property and I/we hereby further agree that this security bond may be held by the said Collector on behalf of the State Government and the said Collector on behalf of the State Government may assign the security bond to the rightful trustee (s) of the said trust property.

In witness whereof I/we set my/our hand(s) here to this day the.....2000.....

Principal (s)

I/We.....son (s) of.....resident (s) of.....P.S. district hereby/undertake to make good any claim to the rightful trustee(s) of the trust property mentioned in the Schedule 'A' hereto in case the Principal (s) makes/make default in payment of the claim by virtue of the above agreement.

Signed by the witness mentioned in the presence of.....

Surety.

[Form "O" (1)]

[Added by Notification No. 1644 LR, dated 24.2.1960.]

[Notice of claim to the proprietor/tenure-holder]

[See Rule 11(1)]

In The Court of The Claims Officer.....

District.....

To,

(Give name and address of the intermediary)

Whereas.....(give name and address of the claimant-petitioner) has brought a claim against you, as detailed in the enclosed copy of the petition of claim, you are hereby called upon to answer the claim either in person or by an agent who is acquainted with the facts of the case and to file a written statement admitting or denying the aforesaid claim within 15 days of the service of the notice or within such further time as the Court may allow.

Take notice that if you fail to submit your written statement without any just or reasonable ground within the period aforementioned, the claim will be heard and determined in your absence.

Given under my hand and the seal of the Court this.....day of.....200.....

Claims Officer

[Form O (2)]

[See Rule 25-G(1)]

(Stamp Fee - Rs. 1-50)

Know all men by these presents thatI,.....son of.....resident of village/mohalla.....P.S.District.....hereby acknowledge to have received from the Government of Bihar a sum of Rs.(Rupees.....) on account of ad interim payment under Section 33 of the Bihar Land Reforms Act, 1950, for the period from.....to.....sanctioned by Order No. dated of the office of the on behalf of myself and all my co-sharers (including minors) as the Karta/adult member of the joint family/the minor Sri(here give name, parentage and residence of the minor) as his guardian and for and on behalf of myself and for and on behalf of my co-sharers/the said minor, I hereby undertake in consideration of the payment of the aforementioned amount to hold the State Government fully indemnified in respect of claims to any ad interim payment, due to myself/any of my co-sharers (including minors) of the joint family the said minor for the aforesaid period on account of our/his intermediary interests vested in the Government of Bihar under the Bihar Land Reforms Act, 1950.

In witness whereof I set my hand hereunto this day the year of 200.....Signature of the Karta of the Joint Hindu family/guardian of the minor.

(1)

Witness.....

(2)

Witness.....

Address.....

Address.....

Occupation.....

Occupation.....

Form P to Form P (5)

[X X X X]

[Omitted by G.S.R. 62, dated 19.9.1981.]

[Form P (6)]

[Added by Notification No. 1644 L.R., dated 24.2.1960.]

Public Notice

[See Rule 21 (1)]

To Whomsoever it May Concern

Whereas the amount of compensation/annuity payable in respect of the intermediary interest mentioned in the Draft Compensation Assessment-roll attached herewith has been determined and the draft Compensation Assessment roll prepared in accordance with the provisions of the Bihar Land Reforms Act, 1950.

And whereas the amount of compensation specified in the said Draft Assessment-Roll is the entire amount of compensation payable in respect of the interest of the intermediary in the estate/tenure or part thereof referred to therein and the person (s) named therein is/are presumed to be the only person (s) entitled thereto.

Therefore, it is notified for general information that this notice is being published on [.....]

[The date to be filled up in (b) will be 90 days after the date mentioned in (a).]

(a) and that objections, if any, in respect of an entry in the said Draft Assessment Roll may be filled by any person in my Court on or before [.....]

[The date to be filled up in (b) will be 90 days after the date mentioned in (a).]

(b).

Given under my hand and seal of the Court this day200.....

Compensation Officer.

[Form Q]

[Added by Notification No. 1644 L.R., dated 24.2.1960.]

Register of outgoing intermediaries and the heirs for purposes of settlement of Hats, Bazars, Melas with them in the first instance under Section 7-C of the Bihar Land Reforms Act, 1950

[See Rule 7-0]

Cases

Name of estate/ tenure with tauzi-Khewat number and date of vesting

Name of village with Thana and Thana No., in

which Hat, Bazar or Mela held before the date of vesting.

Description of the land on which Hat, Bazar or Mela held before the date of vesting

Classification (as recorded in settlement)

Plot number

Area

1

2

3

4

5

6

Nature of Sairat (Hat/

Bazar or Mela)

Name of outgoing intermediaries with parentage and postal address

Name of heirs of outgoing intermediaries name in column 3 with parentage and postal addresses and their relationship with the intermediaries

Attestation by the Collector or the prescribed authority

Remarks [Here give date of correcting the entry as per orders on objections or on mutations with reference to the

case record in each case. (Rules 7-N and 7-O)]

7

8

9

10

11

[Form R]

[Substituted by Notification No. 4017 dated 31.5.1960.]

[See Rule 40 (1)]

Note. - (i) The Register will be maintained intermediary-wise.

(ii)

An index will be maintained for this register in which the intermediaries will be shown alphabetically with reference to page no. and entry in Register S.

(iii)

Challan no. with date showing deposit by Transfer Credit of the amounts shown as adjusted in Columns 4 to 8 will be noted in Column 15.

District.....Sub-division.....Anchal.....

Name of the outgoing intermediary and address

Tauzi/ Khewatno. with name of village,

Thana and Thana No.

Extent of interest

Adinterim payment in excess of 2 ½

per cent [Section 33(2)]

Arrears of revenue [Section 4(c)]

Arrears of cesses [Section 4(c)]

1

2

3

4

5

6

Particulars of adjustments against compensation

Any other amount ordered to be recovered by the Collector [Section 4(c)]

Excess rent collected after date of vesting with consent of the intermediary [Section 4(cc)]

Amount of compensation payable to a temporary lessee under Section 24(2) (proviso to Rule 30)

Amount of compensation payable to a creditor under Section 24(5) [proviso to Rule 30]

Amount of compensation foregone for settlement of Hat/ Bazar/ Mela (1st proviso to Rule 39)

7

8

9

10

11

Total amount to be adjusted against compensation

[columns 4+5+6+7+8+9+10+11]

Reference to the compensation case record

Attestation by the Compensation Officer incharge

under his dated signature

Remarks

12
13
14
15
[Form S]
[Added by Notification No. 1644 L.R., dated 24.2.1960.]
Tauzi-wise Index of Applications for Compensation under the Bihar Land Reforms Act, 1950
[See Rule 40(2)]

District.....Sub-division.....Anchal.....

TauziNo. (in serial order)

KhewatNo. under theTauzinoted in
column 1

Name of outgoing proprietor of theTauzinoted in column 1 and his address

Name of the outgoing tenure-holder ofKhewatnoted in column 2

No. and date of application for compensation if
any filed in respect of-

Tauzinoted in column 1

Khewatnoted in column 2

1
2
3
4
5
6

Nature and extent of interest as given in the
compensation application filed

Whether compensation awarded

Reference to the compensation case record

Remarks

7
8
9
10

[Form T]

[Added by Notification No. 1644 L.R., dated 24.2.1960.]

Tender by Registered Outgoing Intermediaries And/Or Their Heirs For Taking Settlement of Hat/Bazar/Mela Under
Section 7-C of The Act

[See Rule 7-P (1)]

Note. - An outgoing intermediary agreeing to forego compensation in respect of the Hat/Bazar/Mela proposed to be
settled may submit his tender in this form.]

I/We [Give name (s) of intermediary/intermediaries and or his/their heir(s) with parentage and addresses] hereby
tender for taking settlement of the Hat/Bazar/Mela commonly known as(Specify name of Hat, Bazar, Mela, if
any) in plot No. measuring an area of.....acres in village.....Thana.....Thana No.for which the reserve
Jama has been fixed at Rs. for a period of.....years commencing from.....200.....I/We further agree to
forego compensation in respect of such Hat/Bazar/Mela.

Note. An intermediary may have more than one interest, but as the compensation record will be one for all his interest,
the same no. of the record will be repeated against all his interest and the entries will be cross checked with the
intermediary wise register. (Form R) so that no entry left by oversight.

I/We hereby accept and agree to abide by and fulfil the terms and conditions specified below:

Terms aand Conditions

(1)

After the tender is accepted by the Competent Authority and before the period of settlement commences, the tender(s) shall execute a lease in Form P (3) which should be registered formally. Failure to comply with this clause will involve cancellation of the tender.

(2)

Any amount due on account of the settlement including any penalty or compensation for loss or damage shall be recoverable from the lessee(s) and his/their heir(s) together with interest at the rate of 6¼ per centum per annum as if it were a public demand.

Dated the.....200.....

Signature of

theWitness.....Address.....Occupation.....

.....Signature of the party making

the tender.

The above tender is hereby accepted.

Dated the..... 200.....

Collector/Additional Collector

Acceptance communicated on.....200.

Signature of the party making the tender.

[Form T (1)]

[Added by Notification No. 1644 L.R., dated 24.2.1960.]

Tender by Registered Outgoing Intermediaries and or Their Heirs for Taking Settlement of Hat/Bazar/Mela Under Section 7C of The Act

[See Rule 7-P (2)]

Note. - An outgoing intermediary not agreeing to forego compensation in respect of the Hat/Bazar/Mela proposed to be settled may submit his tender in this form.]

I/We [Give name(s) of intermediary/intermediaries and/or his/their (s) with parentage and addresses] hereby tender for taking settlement of the Hat/Bazar/Mela commonly known as (specify name of Hat/Bazar/Mela, if any) comprised in plot No. measuring an area of acres in village, Thana....., Thana No. at an annual Jama of Rs. (Rupees.....) as against the fixed reserve Jama of Rs. a year for a period of years commencing from.....200.....for which I/We have deposited in the Treasury/with the Nazir an earnest money of Rs. and a copy of that Treasury challan/Nazir's receipt is attached herewith.

I/We hereby accept and agree to abide by and fulfil the terms and conditions specified below :-

Terms and Conditions

(1)

The tenderer(s) shall deposit in the Treasury/with the Nazir an earnest money at the rate of two per cent of the reserve Jama and shall invariably attach a copy of the Treasury Challan/Nazir's receipt to his/their tender before it is submitted. In the event of the tender Form T(1) being accepted, such earnest money shall be converted into security deposit for the due execution and registration for the lease [Form P (4)] as well as for the due observance and performance of the terms and conditions of this lease.

(2)

The successful tenderer(s) shall, as soon as the tender is declared successful, deposit in the Treasury/with the Nazir twenty-five per cent of the amount tendered as an advance which shall be adjusted at the end when the last instalment of the Jama falls due. Failure to deposit the same will involve forfeiture of the earnest money referred to in clause (1).

(3)

After the tender is accepted by the Competent Authority and before the period of settlement commences, the tenderer(s) shall execute a lease in Form P (4) which should be registered formally. Failure to comply with this clause will, in addition to forfeiture of the earnest money, involve cancellation of the tender.

(4)

Any amount due on account of the settlement including arrears of the Jama or any penalty or compensation for loss or damage shall be recoverable from the lessee(s) and his/their heir(s) together with interest at the rate of 6¼ per cent per annum as if it were a public demand.

Dated the.....200.....Signature ofThe Witness.....Address.....Occupation.....
.....Signature of the party making
the tender.

The above tender is hereby accepted.

Dated the.....200.....

Collector/Additional Collector

Acceptance communicated on.....200.....

Signature of the party making the tender.

[Form U]

[Added by Notification No. 4017 L.R. dated 31.5.1962.]

Affidavit to be sworn by the sole recipient of bonds under Section 32-B.

(See Rule 41)

In the Court of Magistrate.....

Affidavit

I.....son/wife of.....resident of village P.S. P.O. district solemnly affirm and declare
:-

That I am the only claimant having or entitled to my vested interests covered by Compensation Case No.of.....

That I have not received any compensation under the provisions of the Bihar Land Reforms Act, 1950 from any other
Compensation Officer.

That the above statement is true to the best of my knowledge and belief.

Deponent.

Dated.....200.

[Form U (1)]

[Added by Notification No. 4017 LR, dated 31.5.1962.]

[Affidavit to be sworn by all the co-sharers of a joint Hindu Family under Section 32-B]

[In the case of minors, the affidavit will be obtained from the guardians.]

(See Rule 41)

In the Court of Magistrate.....

Affidavit

We, solemnly affirm and declare

That we are the only claimants who are members of a Joint Hindu Family having or entitled to shares in our vested
interests according to the details given below and that we have no other co-shares having or entitled to a share in such
interests covered by Compensation Case no. of on the date of vesting under the Bihar Land Reforms Act,
1950.

That we have not received any compensation under the provisions of the Bihar Land Reforms Act, 1950 from the other
Compensation Officer.

That the above statement is true to the best of our knowledge and belief.

Details of shares in the vested interests covered by compensation

Case no.of.....

Name of co-sharers with parentage

Full address

Extent of share of each co-sharer named in column

1.

1

2

3

Dated the.....200.....

Deponents.

[Form U (2)]

[Added by Notification No. 4017 L.R., dated 31.5.1962.]

[Affidavit to be sworn by all the co-sharers of a Joint Hindu Family under Section 32-B]

[In the case of minors, the affidavit will be obtained from the guardians.]

(See Rule 41)

In the Court of Magistrate,.....

Affidavit

We, solemnly affirm and declare:-

That we are the only claimants who are members of a Joint Hindu Family having or entitled to shares in the vested interests covered by compensation case no of.....according to the details given below, and that there are other co-sharers having or entitled to shares in the said interests on the date of vesting under the Bihar Land Reforms Act, 1950 according to the details given below and that such other co-sharers have not joined in filing this affidavit.

That we have not received any compensation under the provisions of the Bihar Land Reforms Act, 1950 from any other Compensation Officer.

That the above statement is true to the best of our knowledge and belief.

A. Details of shares of those co-sharers who have joined in filing this affidavit.

Name of co-sharers with parentage

Full address

Extent of share of each co-sharer named in column

1.

1

2

3

B. Details of shares of other co-sharers who have not joined in filing this affidavit

Name of co-sharers with parentage

Full address

Extent of share of each co-sharer named in column

1.

1

2

3

Dated the.....200.....

Deponents.

Form U (3)

[Affidavit to be sworn by the successors-in-interest where a compensation holder dies after the bonds have been indented for and/or the cash payment order has been made out but before delivery.]

[In the case of minor, the affidavit will be obtained from the guardians.]

[Vide Rule 33(15)]

In the Court of Magistrate,.....

Affidavit

I/We.....solemnly affirm and declare:-

That I am/we are the only claimant(s) who is/are the successors(s) in interest of.....s/o.....by caste.....resident of village.....P.S.District.....whose compensation was determined in compensation case No. of but who died before the compensation bonds and/or the cash payment order could be delivered to him and that the details of the extent of the interest held by me/us in the quantum of the compensation referred to above is/are as follows :-

Details of shares in the vested interests covered by compensation case no.of.....

Name of co-sharer(s) with parentage

Full address

Extent of share of each co-sharer named in column

1

Extent of interest to temporary lessee referred to under Section 24(2)

Extent of interest of secured creditor referred

to under Section 24(5)

1
2
3
4
5

I/We declare that there is no other person having any interest in the compensation referred to above. The above statement is true to the best of my/our knowledge and belief.

Deponent

Dated the 200.

Identified By :-

Form V

Register of trusts for charitable or religious purposes in respect of which annuity has been sanctioned under Section 24(3) of the Bihar Land Reforms Act, 1950.

(To be maintained in the office of the Collector)

(See Rule 43)

Serial No.

Compensation case No. in which payment of Annuity
sanctioned

Particulars of the Trust deed by which Trust was
created

Name of the Trustee/ Mutawali/ Shebait with

Father's name and address

Amount of annuity

Payable from

Annuity payment order no.

Initials of the Gazetted Officer

Remarks

1
2
3
4
5
6
7
8
9

Form V (1)

Register of Annuity Payment Orders issued on Treasury sanctioned under Section 24(3) of the Bihar Land Reforms Act.

(To be maintained in each District Treasury/Sub-Treasury.)

(Separate page to be allotted to each annuity-holder)

(See Rule 43)

1. Name of Trust

2. Name and address of Trustee/Mutawali/Shebait

3. No. and date of A.P.O.

4. Amount of annuity - Rs. P.per year

5. Year of payment

Voucher No.

Date of payment.....

Initial of T.O.

Remarks

1963.

1964.

1965.

Form V (2)

Bill for perpetual annuity payments to Trustee/Mutawali/Shebait sanctioned under Section 24(3) of the Bihar Land Reforms Act.....

(See Rule 43)

Bill for payment of perpetual annuity for the period

District.....Head of Account.....Treasury Voucher No. of list of payment for

Name of Trustee/ Mutawali/ Shebait with father's name, etc

Annuity

Payment No.

Order

AmountRs.

Total

Total (in words).....

Received contents

Signature of the payee

Please pay to.....

Signature of the payee

Pay Rupees.....

Examined.....

Accountant

Treasury Officer

Dated.

Notifications

S.O. 609 dated 30th June, 1988. - In exercise of the powers conferred by Section 17 of the Bihar Land Reforms Act, 1950 (Bihar Act XXX of 1950) and in supersession of Revenue and Land Reforms Department Notification No. S. O. 3586/R, dated 28th December, 1979, the Governor of Bihar is pleased to constitute a Board under sub-section (1) (a) of Section 18 of the said Act which shall consist of only one member namely Hon'ble Shri Syed Ali Ahmad, a Judge of High Court of Judicature at Patna, to whom an appeal involving the claims exceeding rupees ten thousand shall lie against any decision of the Claims Officer under Section 16 of the said Act.

S.O. 1104 dated 2nd November, 1988. - In exercise of the powers conferred by clause (b) of sub-section I of Section 18 of the Bihar Land Reforms Act, 1950, (Bihar Act XXX of 1950), the Governor of Bihar is pleased to constitute a Board consisting of the District Judges of each of the Judgeships noted in the schedule attached to hear appeals where the value of claims does not exceed Rupees ten thousand for the territorial jurisdiction over the districts noted against each of them.

Sl. No.

Designation

Area

District Judge.

Whole of District

1.

Aurangabad

Aurangabad

2.

Begusarai

Begusarai

3.

Bhagalpur

Bhagalpur

4.

Bhojpur Judicial Commissioner.

Bhojpur

5.

Ranchi District Judge.

Ranchi and Lohardagga

6.

Darbhanga

Darbhanga

7.

East Champaran

East Champaran

8.

Gaya

Gaya and Jahanabad

9.

Nawadah

Nawadah

10.

Giridih

Giridih

11.

Hazaribagh

Hazaribagh

12.

Katihar

Katihar

13.

Madhubani

Madhubani

14.

Monghyr

Monghyr and Khagaria

15.

Muzaffarpur

Muzaffarpur

16.

Nalanda

Nalanda

17.

Patna

Patna

18.

Palamau

Palamau

19.

Purnea

Purnea

20.

Rohtas

Rohtas

21.

Saharsa

Saharsa

22.

Madhepura

Madhepura

23.

Santhal Pargana

Santhal Pargana and Sahebganj

24.

Deoghar

Deoghar

25.

Godda

Godda

26.

Saran

Saran

27.

Samastipur

Samastipur

28.

Sitamarhi

Sitamarhi

29.

Siwan

Siwan

30.

Gopalganj

Gopalganj

31.

Chaibassa

Chaibassa

32.

Vaishali

Vaishali

33.

West Champaran

West Champaran

34.

Gumla

Gumla

35.

Dhanbad

Dhanbad

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Translation